

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
I	PRELIMINARY	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
II	DATA PROTECTION PRINCIPLES	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.4	Duty of data controller and data processor to comply with principles	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.4(1)	Duty of data controller and data processor to comply with principles	Subject to the exemptions provided under Part VII of this Act, a data controller and a data processor shall undertake appropriate measures to comply with the data protection principles set out in this Part, and upon a request by the Commissioner, shall demonstrate compliance with the data protection principles.	Functional	Intersects With	Statutory, Regulatory & Contractual Compliance	CPL-01	Mechanisms exist to facilitate the identification and implementation of relevant statutory, regulatory and contractual controls.	5	
II.4(2)	Duty of data controller and data processor to comply with principles	A data controller and data processor shall take reasonable steps to ensure that their employees who have access to personal data comply with the data protection principles set out in this Part.	Functional	Intersects With	Terms of Employment	HRS-05	Mechanisms exist to require all employees and contractors to apply cybersecurity and data protection principles in their daily work to enable secure, compliant and resilient capabilities.	5	
II.4(3)	Duty of data controller and data processor to comply with principles	A data controller or data processor who processes personal data contrary to the data protection principles set out in this Part commits an offence and is liable on summary conviction to a fine not exceeding fifty thousand dollars or to a term of imprisonment not exceeding three years, or to both.	Functional	No Relationship	N/A	N/A	N/A	0	
II.5	Principles in relation to the processing of personal data	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.5(1)	Principles in relation to the processing of personal data	Personal data shall be —	Functional	No Relationship	N/A	N/A	N/A	0	
II.5(1)(a)	Principles in relation to the processing of personal data	processed lawfully, fairly and in a transparent manner in relation to the data subject;	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
II.5(1)(b)	Principles in relation to the processing of personal data	obtained for one or more specified lawful purposes, and shall not be further processed in any manner incompatible with the lawful purpose;	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
II.5(1)(b)	Principles in relation to the processing of personal data	obtained for one or more specified lawful purposes, and shall not be further processed in any manner incompatible with the lawful purpose;	Functional	Intersects With	Purpose Specification	PRI-02.1	Mechanisms exist to ensure data privacy notices identify the purpose(s) for which Personal Data (PD) is collected, received, processed, stored, transmitted and/or shared.	5	
II.5(1)(c)	Principles in relation to the processing of personal data	adequate, relevant and not excessive in relation to the purpose for which they are collected or processed;	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
II.5(1)(c)	Principles in relation to the processing of personal data	adequate, relevant and not excessive in relation to the purpose for which they are collected or processed;	Functional	Intersects With	Restrict Collection, Processing & Sharing To Identified Purpose	PRI-04	Mechanisms exist to minimize the collection, processing and/or sharing of Personal Data (PD) to only what is adequate, relevant and limited to the purposes identified in the data privacy notice, including protections against collecting PD from minors without appropriate parental or legal guardian consent.	5	
II.5(1)(d)	Principles in relation to the processing of personal data	accurate and kept up to date;	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
II.5(1)(d)	Principles in relation to the processing of personal data	accurate and kept up to date;	Functional	Intersects With	Personal Data (PD) Accuracy & Integrity	PRI-05.2	Mechanisms exist to ensure the accuracy and relevance of Personal Data (PD) throughout the information lifecycle by: (1) Keeping PD up-to-date; and (2) Remediating identified inaccuracies, as necessary.	5	
II.5(1)(e)	Principles in relation to the processing of personal data	kept in a form which permits identification of data subjects for no longer than is necessary for the purposes for which the personal data is processed; and	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
II.5(1)(e)	Principles in relation to the processing of personal data	kept in a form which permits identification of data subjects for no longer than is necessary for the purposes for which the personal data is processed; and	Functional	Intersects With	Personal Data (PD) Retention & Disposal	PRI-05	Mechanisms exist to: (1) Retain Personal Data (PD), including metadata, for an organization-defined time period to fulfill the purpose(s) identified in the notice or as required by law; (2) Dispose of, destroys, erases, and/or anonymizes the PD, regardless of the method of storage; and (3) Use organization-defined techniques or methods to ensure secure deletion or destruction of PD (including originals, copies and archived records).	5	
II.5(1)(f)	Principles in relation to the processing of personal data	processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, using appropriate technical or organizational measures.	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
II.5(1)(f)	Principles in relation to the processing of personal data	processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, using appropriate technical or organizational measures.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
II.5(2)	Principles in relation to the processing of personal data	For the purposes of paragraph (b) of subsection (1), further processing for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes shall not be considered to be incompatible with the initial purposes.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
II.5(2)	Principles in relation to the processing of personal data	For the purposes of paragraph (b) of subsection (1), further processing for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes shall not be considered to be incompatible with the initial purposes.	Functional	Intersects With	Internal Use of Personal Data (PD) For Testing, Training and Research	PRI-05.1	Mechanisms exist to address the use of Personal Data (PD) for internal testing, training and research that: (1) Takes measures to limit or minimize the amount of PD used for internal testing, training and research purposes; and (2) Authorizes the use of PD when such information is required for internal testing, training and research.	5	
II.5(3)	Principles in relation to the processing of personal data	For the purposes of paragraph (d) of subsection (1), every reasonable step shall be taken to ensure that personal data that is inaccurate, having regard to the purposes for which they are processed, are erased or rectified without delay.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
II.5(3)	Principles in relation to the processing of personal data	For the purposes of paragraph (d) of subsection (1), every reasonable step shall be taken to ensure that personal data that is inaccurate, having regard to the purposes for which they are processed, are erased or rectified without delay.	Functional	Intersects With	Personal Data (PD) Accuracy & Integrity	PRI-05.2	Mechanisms exist to ensure the accuracy and relevance of Personal Data (PD) throughout the information lifecycle by: (1) Keeping PD up-to-date; and (2) Remediating identified inaccuracies, as necessary.	5	
II.6	Conditions for processing the personal data of a data subject	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.6(1)	Conditions for processing the personal data of a data subject	The personal data of a data subject is processed lawfully, if it is processed based on one of the following conditions —	Functional	No Relationship	N/A	N/A	N/A	0	
II.6(1)(a)	Conditions for processing the personal data of a data subject	the data subject has given his consent to the processing of his personal data for one or more specific purposes;	Functional	No Relationship	N/A	N/A	N/A	0	
II.6(1)(b)	Conditions for processing the personal data of a data subject	the processing is necessary —	Functional	No Relationship	N/A	N/A	N/A	0	
II.6(1)(b)(i)	Conditions for processing the personal data of a data subject	for the performance of a contract to which the data subject is a party or the taking of a step at the request of the data subject, for the purpose of entering into a contract;	Functional	No Relationship	N/A	N/A	N/A	0	
II.6(1)(b)(ii)	Conditions for processing the personal data of a data subject	for compliance with a legal obligation to which the data controller is subject, other than an obligation imposed by contract;	Functional	No Relationship	N/A	N/A	N/A	0	
II.6(1)(b)(iii)	Conditions for processing the personal data of a data subject	in order to protect the vital interests of the data subject;	Functional	No Relationship	N/A	N/A	N/A	0	
II.6(1)(b)(iv)	Conditions for processing the personal data of a data subject	for the exercise of a function conferred on a person by or under any written law;	Functional	No Relationship	N/A	N/A	N/A	0	

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II.6(1)(b)(v)	Conditions for processing the personal data of a data subject	for the exercise of a function of the Crown or a public body;	Functional	No Relationship	N/A	N/A	N/A	0	
II.6(1)(b)(vi)	Conditions for processing the personal data of a data subject	for the exercise of another function of a public nature exercised in the public interest by a person;	Functional	No Relationship	N/A	N/A	N/A	0	
II.6(1)(b)(vii)	Conditions for processing the personal data of a data subject	for the purposes of legitimate interests pursued by a data controller or by a third party to whom the personal data is disclosed, except if the processing is unwarranted by reason of prejudice to the rights and freedoms or legitimate interests of the data subject;	Functional	No Relationship	N/A	N/A	N/A	0	
II.6(1)(b)(viii)	Conditions for processing the personal data of a data subject	for the protection of the fundamental rights and freedoms of the —	Functional	No Relationship	N/A	N/A	N/A	0	
II.6(1)(b)(viii)(a)	Conditions for processing the personal data of a data subject	data subject; or	Functional	No Relationship	N/A	N/A	N/A	0	
II.6(1)(b)(viii)(b)	Conditions for processing the personal data of a data subject	identifiable natural person;	Functional	No Relationship	N/A	N/A	N/A	0	
II.6(1)(b)(x)	Conditions for processing the personal data of a data subject	for the performance of a task carried out in the public interest or in the exercise of the functions of the data controller under this Act;	Functional	No Relationship	N/A	N/A	N/A	0	
II.6(1)(b)(x)	Conditions for processing the personal data of a data subject	for the purposes of a legitimate interest pursued by the data controller or by a third party, except where the interest is overridden by the interest or fundamental rights and freedoms of the data subject, which require protection of personal data, in particular where the data subject is a child;	Functional	No Relationship	N/A	N/A	N/A	0	
II.6(1)(b)(xi)	Conditions for processing the personal data of a data subject	for the exercise of functions of either House of Parliament;	Functional	No Relationship	N/A	N/A	N/A	0	
II.6(1)(b)(xii)	Conditions for processing the personal data of a data subject	for the exercise of any function conferred on a person by or under a written law; or	Functional	No Relationship	N/A	N/A	N/A	0	
II.6(1)(b)(xiii)	Conditions for processing the personal data of a data subject	for the administration of justice	Functional	No Relationship	N/A	N/A	N/A	0	
II.6(2)	Conditions for processing the personal data of a data subject	Subparagraph (xii) of paragraph (b) of subsection (1) shall not apply to processing carried out by public bodies, in the performance of their tasks.	Functional	No Relationship	N/A	N/A	N/A	0	
II.6(3)	Conditions for processing the personal data of a data subject	For the purposes of subparagraph (xii) of paragraph (b) of subsection (1), the Minister may, after consultation with the Commissioner, make regulations specifying particular circumstances in which the condition specified in subsection (1), shall complied with.	Functional	No Relationship	N/A	N/A	N/A	0	
II.7	Fairness in the processing of personal data	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.7(1)	Fairness in the processing of personal data	In determining whether personal data is processed fairly, regard is to be had to the method by which it is obtained, including in particular whether any person from whom the personal data is obtained is deceived or misled as to the purpose or purposes for which the personal data is to be processed.	Functional	Intersects With	Data Subject Consent	PRI-03	Mechanisms exist to enable data subjects to authorize the collection, receipt, processing, storage, transmission, sharing, updating and/or disposal of their Personal Data (PD), where the data subject is provided, prior to collection, with: (1) Plain language explaining the potential data privacy risks of the authorization; (2) A means to decline the authorization; and (3) Necessary choice and consent-related criteria required by applicable statutory, regulatory and contractual obligations.	5	
II.7(2)	Fairness in the processing of personal data	Subject to subsection (3), personal data is to be treated as having been obtained fairly if the personal data consists of information obtained from a person who is authorized by or under any enactment to supply the data or required to supply by the data any convention or other instrument imposing an international obligation on The Bahamas.	Functional	No Relationship	N/A	N/A	N/A	0	
II.7(3)	Fairness in the processing of personal data	Personal data is not to be treated as processed fairly unless —	Functional	No Relationship	N/A	N/A	N/A	0	
II.7(3)(a)	Fairness in the processing of personal data	in the case of data obtained from the data subject, the data controller ensures so far as practicable that the data subject has, is provided with, or has readily available to him, the following information —	Functional	No Relationship	N/A	N/A	N/A	0	
II.7(3)(a)(i)	Fairness in the processing of personal data	the identity of the data controller;	Functional	No Relationship	N/A	N/A	N/A	0	
II.7(3)(a)(ii)	Fairness in the processing of personal data	where a data controller has nominated a representative for the purposes of this Act, the identity of that representative;	Functional	No Relationship	N/A	N/A	N/A	0	
II.7(3)(a)(iii)	Fairness in the processing of personal data	the purpose or purposes for which the data is intended to be processed;	Functional	No Relationship	N/A	N/A	N/A	0	
II.7(3)(a)(iv)	Fairness in the processing of personal data	the identity of any third party to which disclosure of the personal data is contemplated;	Functional	No Relationship	N/A	N/A	N/A	0	
II.7(3)(a)(v)	Fairness in the processing of personal data	the legal authority for seeking the personal data, where applicable;	Functional	No Relationship	N/A	N/A	N/A	0	
II.7(3)(a)(vi)	Fairness in the processing of personal data	whether the provision, by the data subject, of the personal data sought is compulsory under any law, and the consequences of not providing the personal data;	Functional	No Relationship	N/A	N/A	N/A	0	
II.7(3)(a)(vii)	Fairness in the processing of personal data	the expected period of retention of the personal data; and	Functional	No Relationship	N/A	N/A	N/A	0	
II.7(3)(a)(viii)	Fairness in the processing of personal data	any further information which is necessary, having regard to the specific circumstances in which the data is or is to be processed, to enable processing in respect of the data subject to be fair; and	Functional	No Relationship	N/A	N/A	N/A	0	
II.7(3)(b)	Fairness in the processing of personal data	in any other case, the data controller ensures so far as practicable that, before the relevant time or as soon as practicable after that time, the data subject is provided with, or has readily available to him, the information specified in subparagraphs (i) to (vi) of paragraph (a).	Functional	No Relationship	N/A	N/A	N/A	0	
II.7(4)	Fairness in the processing of personal data	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
II.8	Transparency in the processing of personal data	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.8(1)	Transparency in the processing of personal data	Where personal data relating to a data subject is collected from the data subject, the data controller shall, at the time when personal data is obtained, provide the data subject with the following —	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	

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II.8(1)(e)	Transparency in the processing of personal data	the identity and contact details of the data controller and his representative;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
II.8(1)(b)	Transparency in the processing of personal data	the purpose of the processing;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
II.8(1)(c)	Transparency in the processing of personal data	the legal basis on which the processing is based;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
II.8(1)(d)	Transparency in the processing of personal data	the legitimate interests pursued by the data controller, where the processing is based on section 6(1)(b)(v);	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
II.8(1)(e)	Transparency in the processing of personal data	the types or categories of personal data intended to undergo processing;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
II.8(1)(f)	Transparency in the processing of personal data	the period of time for which the personal data is retained;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
II.8(1)(g)	Transparency in the processing of personal data	the data subject's right to —	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	

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II.8(1)(g)(i)	Transparency in the processing of personal data	access to personal data under section 24;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
II.8(1)(g)(ii)	Transparency in the processing of personal data	object to the processing of data personal data under section 27;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
II.8(1)(g)(iii)	Transparency in the processing of personal data	rectification and erasure of personal data under sections 26 and 28;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
II.8(1)(h)	Transparency in the processing of personal data	the identity of the recipient to whom the personal data may be disclosed;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
II.8(1)(i)	Transparency in the processing of personal data	where the data controller intends to transfer the data to a recipient in a third country, territory or international organization, a description of the technical and organizational measures taken by the data controller under section 52(2).	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
II.8(2)	Transparency in the processing of personal data	The data controller shall provide the information required under this section to the data subject without charging a fee —	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
II.8(2)(a)	Transparency in the processing of personal data	in a concise, transparent, intelligible and easily accessible form, using clear and plain language;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
II.8(2)(b)	Transparency in the processing of personal data	in writing or by other means including electronic means; and	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
II.8(2)(c)	Transparency in the processing of personal data	orally, upon the request of data subject on confirmation of the identity of the data subject.	Functional	No Relationship	N/A	N/A	N/A	0	
II.8(3)	Transparency in the processing of personal data	Subsection (1) shall not apply where and insofar as —	Functional	No Relationship	N/A	N/A	N/A	0	
II.8(3)(a)	Transparency in the processing of personal data	the data subject already has the information;	Functional	No Relationship	N/A	N/A	N/A	0	
II.8(3)(b)	Transparency in the processing of personal data	the data controller is not able to provide the information to the data subject directly;	Functional	No Relationship	N/A	N/A	N/A	0	
II.8(3)(c)	Transparency in the processing of personal data	there is an obligation of secrecy or confidentiality under a written law or an obligation of legal professional privilege that prohibits the disclosure of information; or	Functional	No Relationship	N/A	N/A	N/A	0	
II.8(3)(d)	Transparency in the processing of personal data	the provision of the information proves impossible or would involve a disproportionate effort for the processing of personal data for —	Functional	No Relationship	N/A	N/A	N/A	0	
II.8(3)(d)(i)	Transparency in the processing of personal data	archiving purposes in the public interest;	Functional	No Relationship	N/A	N/A	N/A	0	
II.8(3)(d)(ii)	Transparency in the processing of personal data	scientific or historical research purposes; or	Functional	No Relationship	N/A	N/A	N/A	0	
II.8(3)(d)(iii)	Transparency in the processing of personal data	statistical purposes;	Functional	No Relationship	N/A	N/A	N/A	0	
II.8(3)(e)	Transparency in the processing of personal data	the provision of the information, subject to the conditions in section 6 and the technical and organizational measures referred to in paragraph (i) of subsection (1) of this Act, are likely to render impossible or seriously impair the objectives of the processing of the personal data of the data subject.	Functional	No Relationship	N/A	N/A	N/A	0	
II.8(4)	Transparency in the processing of personal data	Notwithstanding subsection (3), the data controller shall take appropriate measures to protect the data subject's fundamental rights and freedoms and legitimate interests, including making the information publicly available.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
II.9	Data storage limitation	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.9(1)	Data storage limitation	Notwithstanding section 5(1)(e), personal data may be stored for a longer period where it is processed solely for —	Functional	Intersects With	Personal Data (PD) Retention & Disposal	PRI-05	Mechanisms exist to: (1) Retain Personal Data (PD), including metadata, for an organization-defined time period to fulfill the purpose(s) identified in the notice or as required by law; (2) Dispose of, destroys, erases, and/or anonymizes the PD, regardless of the method of storage; and (3) Use organization-defined techniques or methods to ensure secure deletion or destruction of PD (including originals, copies and archived records).	5	
II.9(1)(a)	Data storage limitation	archiving purposes in the public interest; or	Functional	Intersects With	Personal Data (PD) Retention & Disposal	PRI-05	Mechanisms exist to: (1) Retain Personal Data (PD), including metadata, for an organization-defined time period to fulfill the purpose(s) identified in the notice or as required by law; (2) Dispose of, destroys, erases, and/or anonymizes the PD, regardless of the method of storage; and (3) Use organization-defined techniques or methods to ensure secure deletion or destruction of PD (including originals, copies and archived records).	5	
II.9(1)(b)	Data storage limitation	scientific, historical, research; or	Functional	Intersects With	Personal Data (PD) Retention & Disposal	PRI-05	Mechanisms exist to: (1) Retain Personal Data (PD), including metadata, for an organization-defined time period to fulfill the purpose(s) identified in the notice or as required by law; (2) Dispose of, destroys, erases, and/or anonymizes the PD, regardless of the method of storage; and (3) Use organization-defined techniques or methods to ensure secure deletion or destruction of PD (including originals, copies and archived records).	5	
II.9(1)(c)	Data storage limitation	statistical purposes, and	Functional	Intersects With	Personal Data (PD) Retention & Disposal	PRI-05	Mechanisms exist to: (1) Retain Personal Data (PD), including metadata, for an organization-defined time period to fulfill the purpose(s) identified in the notice or as required by law; (2) Dispose of, destroys, erases, and/or anonymizes the PD, regardless of the method of storage; and (3) Use organization-defined techniques or methods to ensure secure deletion or destruction of PD (including originals, copies and archived records).	5	
II.9(2)	Data storage limitation	Where personal data is stored under subsection (1), the data controller shall implement appropriate safeguards to protect the fundamental rights and freedoms of the data subject.	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
II.10	Accuracy of personal data	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.10(1)	Accuracy of personal data	The data controller shall take all reasonable steps to ensure that personal data that is inaccurate, having regard to the purposes for which they are processed, are erased or rectified without delay.	Functional	Intersects With	Personal Data (PD) Accuracy & Integrity	PRI-05.2	Mechanisms exist to ensure the accuracy and relevance of Personal Data (PD) throughout the information lifecycle by: (1) Keeping PD up-to-date; and (2) Remediating identified inaccuracies, as necessary.	5	
II.10(2)	Accuracy of personal data	Personal data shall be kept up to date —	Functional	Intersects With	Personal Data (PD) Accuracy & Integrity	PRI-05.2	Mechanisms exist to ensure the accuracy and relevance of Personal Data (PD) throughout the information lifecycle by: (1) Keeping PD up-to-date; and (2) Remediating identified inaccuracies, as necessary.	5	
II.10(2)(a)	Accuracy of personal data	where it is necessary for the processing carried out by the data controller and to the extent that it is reasonable; and	Functional	Intersects With	Personal Data (PD) Accuracy & Integrity	PRI-05.2	Mechanisms exist to ensure the accuracy and relevance of Personal Data (PD) throughout the information lifecycle by: (1) Keeping PD up-to-date; and (2) Remediating identified inaccuracies, as necessary.	5	
II.10(2)(b)	Accuracy of personal data	at the specific request of the data subject, under section 6(1)(b)(i).	Functional	Intersects With	Personal Data (PD) Accuracy & Integrity	PRI-05.2	Mechanisms exist to ensure the accuracy and relevance of Personal Data (PD) throughout the information lifecycle by: (1) Keeping PD up-to-date; and (2) Remediating identified inaccuracies, as necessary.	5	
II.11	Data security	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.11(1)	Data security	Having regard to the state of technological development and the cost of implementation, the technical or organizational measures referred to in section 52(2) shall ensure a level of security appropriate to —	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
II.11(1)(a)	Data security	the harm or distress that might result from the unauthorized or unlawful processing or accidental loss, destruction or damage; and	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
II.11(1)(b)	Data security	the nature of the personal data to be protected.	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
II.11(2)	Data security	In assessing the appropriate level of security, account shall be taken of the risks that are presented by processing, particularly from accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to personal data transmitted, stored or otherwise processed. See FDE for details.	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
III	OFFICE OF THE DATA PROTECTION COMMISSIONER	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV	DATA SUBJECT	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24	Right of access	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24(1)	Right of access	Subject to the exemptions provided under Part VII of this Act, a data subject shall —	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24(1)(a)	Right of access	be informed by a data controller whether personal data of the data subject is being processed by or on behalf of the data controller;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
IV.24(1)(b)	Right of access	request from, and be given by the data controller, where personal data of the data subject is being processed by or on behalf of the data controller, detailed information of —	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
IV.24(1)(b)(i)	Right of access	the purposes for the processing of the personal data;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
IV.24(1)(b)(ii)	Right of access	the categories of personal data being processed;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
IV.24(1)(b)(iii)	Right of access	the recipients or categories of recipient to whom the personal data has been disclosed or shall be disclosed;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
IV.24(1)(b)(iv)	Right of access	the recipients in other countries or international organizations to whom the personal data has been disclosed or shall be disclosed;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
IV.24(1)(b)(v)	Right of access	the length of time for which the personal data shall be stored, and the criteria to be used to determine the length of time for storage;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
IV.24(1)(c)	Right of access	be given information on the right to request from the data controller —	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
IV.24(1)(c)(i)	Right of access	the rectification or erasure of his personal data;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
IV.24(1)(c)(ii)	Right of access	the restriction of the processing of the personal data;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
IV.24(1)(c)(iii)	Right of access	the method of objection to the processing of his personal data;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
IV.24(1)(d)	Right of access	be given information on the countries and territories outside of The Bahamas to which the data controller, whether directly or indirectly, transfers, intends to transfer, or wishes to transfer the personal data;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
IV.24(1)(e)	Right of access	be provided with details of the information and the source of the information, where the personal data is not collected from the data subject;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
IV.24(1)(f)	Right of access	be advised of general measures to be taken for the purpose of complying with the data protection principles specified in section 5(1); and	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
IV.24(1)(g)	Right of access	be provided with other information required by the Commissioner.	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
IV.24(2)	Right of access	A data controller shall communicate with the data subject in a clear, intelligent and unambiguous manner, concerning —	Functional	Intersects With	Data Subject Communications	PRI-17	Mechanisms exist to craft disclosures and communications to data subjects in a manner that is concise, unambiguous and understandable by a reasonable person.	5	
IV.24(2)(a)	Right of access	the data subject's personal data; and	Functional	Intersects With	Data Subject Communications	PRI-17	Mechanisms exist to craft disclosures and communications to data subjects in a manner that is concise, unambiguous and understandable by a reasonable person.	5	
IV.24(2)(b)	Right of access	other information available to the data controller on the source used to obtain the personal data.	Functional	Intersects With	Data Subject Communications	PRI-17	Mechanisms exist to craft disclosures and communications to data subjects in a manner that is concise, unambiguous and understandable by a reasonable person.	5	
IV.24(3)	Right of access	If the personal data of the data subject has been processed by automated means and is used for the purposes of — and the personal data processed by automatic means constituted or is likely to constitute, the sole basis for a decision significantly affecting the data subject, the data subject shall be informed by the data controller of the reasons for that decision.	Functional	Intersects With	Automated Decision-Making Technology (ADMT) For Data Subject Actions	PRI-19	Mechanisms exist to ensure data subject actions utilizing Automated Decision-Making Technology (ADMT) where computation replaces, or substantially replaces, human decisionmaking, conforms with all applicable statutory, regulatory and/or contractual obligations.	5	
IV.24(3)(a)	Right of access	evaluating matters relating to the data subject;	Functional	Intersects With	Automated Decision-Making Technology (ADMT) Transparency	PRI-19.3	Mechanisms exist to provide data subjects with sufficient details of the logic and parameters used by Automated Decision-Making Technology (ADMT) to process the Personal Data (PD) to generate an output with respect to the data subject.	5	
IV.24(3)(b)	Right of access	evaluating the data subject's performance at work;	Functional	Intersects With	Automated Decision-Making Technology (ADMT) Transparency	PRI-19.3	Mechanisms exist to provide data subjects with sufficient details of the logic and parameters used by Automated Decision-Making Technology (ADMT) to process the Personal Data (PD) to generate an output with respect to the data subject.	5	
IV.24(3)(c)	Right of access	assessing the creditworthiness of the data subject; and	Functional	Intersects With	Automated Decision-Making Technology (ADMT) Transparency	PRI-19.3	Mechanisms exist to provide data subjects with sufficient details of the logic and parameters used by Automated Decision-Making Technology (ADMT) to process the Personal Data (PD) to generate an output with respect to the data subject.	5	
IV.24(3)(d)	Right of access	determining the reliability or conduct of the data subject,	Functional	Intersects With	Automated Decision-Making Technology (ADMT) Transparency	PRI-19.3	Mechanisms exist to provide data subjects with sufficient details of the logic and parameters used by Automated Decision-Making Technology (ADMT) to process the Personal Data (PD) to generate an output with respect to the data subject.	5	
IV.24(4)	Right of access	A data controller shall not be obliged under subsections (1), (2) or (3) to supply personal data to a data subject unless the data controller has received —	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
IV.24(4)(a)	Right of access	a request in writing; and	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
IV.24(4)(b)	Right of access	the prescribed fee.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
IV.24(5)	Right of access	Where a data controller reasonably requires further information in order to — and has informed the data subject in writing of the requirement, the data controller is not obliged to comply with the request unless supplied with that information	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
IV.24(5)(a)	Right of access	be satisfied as to the identity of the data subject making the request; or	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
IV.24(5)(b)	Right of access	to locate the information that the data subject seeks,	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
IV.24(6)	Right of access	A data controller shall comply with a request under this section within thirty days (or other period as may be prescribed by regulations) of the date on which the data controller receives the request and the fee specified in subsection (4), but where the data controller has requested further information under subsection (5), the period to supply the information shall not commence until the information requested has been provided.	Functional	Intersects With	Statutory, Regulatory & Contractual Compliance	CPL-01	Mechanisms exist to facilitate the identification and implementation of relevant statutory, regulatory and contractual controls.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
IV.24(7)	Right of access	If a data controller cannot comply with the request under subsection (4) without disclosing personal data relating to another data subject who can be identified from that personal data, the data controller is not obliged to comply with the request unless —	Functional	Intersects With	Statutory, Regulatory & Contractual Compliance	CPL-01	Mechanisms exist to facilitate the identification and implementation of relevant statutory, regulatory and contractual controls.	5	
IV.24(7)(a)	Right of access	the other data subject has consented to the disclosure of the personal data to the person making the request; or	Functional	Intersects With	Statutory, Regulatory & Contractual Compliance	CPL-01	Mechanisms exist to facilitate the identification and implementation of relevant statutory, regulatory and contractual controls.	5	
IV.24(7)(b)	Right of access	it is reasonable in all the circumstances to comply with the request without the consent of the other data subject.	Functional	Intersects With	Statutory, Regulatory & Contractual Compliance	CPL-01	Mechanisms exist to facilitate the identification and implementation of relevant statutory, regulatory and contractual controls.	5	
IV.24(8)	Right of access	In subsection (7), the reference to personal data relating to another data subject includes a reference to personal data identifying that other data subject as the source of the personal data sought in the request.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24(9)	Right of access	Subsection (7) shall not be construed as excusing a data controller from supplying that part of the personal data as can be supplied without disclosing the identity of the other data subject concerned, whether by the omission of names or other identifying particulars or otherwise.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24(10)	Right of access	In determining for the purposes of subsection (7)(b) whether it is reasonable in all the circumstances to comply with the request without the consent of the other data subject concerned, the data controller shall have regard to —	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
IV.24(10)(a)	Right of access	a duty of confidentiality owed to the other data subject;	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
IV.24(10)(b)	Right of access	steps taken by the data controller to seek the consent of the other data subject;	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
IV.24(10)(c)	Right of access	whether the other data subject is capable of giving consent; and	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
IV.24(10)(d)	Right of access	an express refusal of consent by the other data subject.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
IV.24(11)	Right of access	If the Commissioner is satisfied on the application of a data subject who has made a request under this section that a data controller has contravened this section in failing to comply with the request, the Commissioner shall issue an enforcement notice under section 73 ordering the data controller to comply with the request.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24(12)	Right of access	If a request made under this section is received by a data processor who is processing the personal data of the data subject on behalf of a data controller, the data processor shall inform the data subject of his right to make his request to the data controller.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24(13)	Right of access	As regards the treatment of requests made under this section —	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24(13)(a)	Right of access	the obligation imposed by subsection (2)(a) shall be complied with by supplying the data subject with a copy of the personal data in the format requested unless —	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24(13)(a)(i)	Right of access	the supply of the copy is not possible or would involve disproportionate effort; or	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24(13)(a)(ii)	Right of access	the data subject agrees not to be supplied with the copy;	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24(13)(b)	Right of access	If any of the personal data referred to in subsection (2)(a) are expressed in terms that are not intelligible without explanation the copy shall be accompanied by an adequate explanation;	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24(13)(c)	Right of access	If a data controller has previously complied with a request under this section by the data subject, the data controller is not obliged to comply with a subsequent identical or similar request under this section by the data subject unless the interval between compliance with the previous request and the making of the current request is reasonable;	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24(13)(d)	Right of access	in determining whether the interval referred to in paragraph (c) is reasonable, regard shall be had to the nature of the personal data, the purpose for which the personal data are processed and the frequency with which the personal data are altered;	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24(13)(e)	Right of access	information under subsection (3) shall not be provided if information as to the logic of any decision-making constitutes a trade secret;	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24(13)(f)	Right of access	personal data and other information supplied under this section shall be supplied by reference to the data in question at the time when the request for the personal data is received, except that account may be taken of any amendment or deletion made between that time and the time when the information is supplied, the amendment or deletion that would have been made, regardless of the receipt of the request.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
IV.25	Right to file complaint	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.25(1)	Right to file complaint	A data processor, data subject or an agent of a data controller, may file a complaint with the Commissioner if the data subject considers that the processing of personal data by a data controller contravenes this Act.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.25(2)	Right to file complaint	The Commissioner shall assess all complaints received pursuant to subsection (1), and following the assessment, inform the complainant in writing whether the complaint shall be investigated and the reasons for the investigation of the complaint.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.26	Right to rectification of inaccurate personal data	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.26(1)	Right to rectification of inaccurate personal data	The data subject has the right to obtain from the data controller, without undue delay, the rectification of inaccurate personal data concerning the data subject.	Functional	Intersects With	Correcting Inaccurate Personal Data (PD)	PRI-06.1	Mechanisms exist to maintain a process for: (1) Data subjects to have inaccurate Personal Data (PD) maintained by the organization corrected or amended; and (2) Disseminating corrections or amendments of PD to other authorized users of the PD.	5	
IV.26(2)	Right to rectification of inaccurate personal data	The data subject shall, having regard to the purposes of the processing, have the incomplete personal data completed by the data controller through the provision of a supplementary statement.	Functional	Intersects With	Correcting Inaccurate Personal Data (PD)	PRI-06.1	Mechanisms exist to maintain a process for: (1) Data subjects to have inaccurate Personal Data (PD) maintained by the organization corrected or amended; and (2) Disseminating corrections or amendments of PD to other authorized users of the PD.	5	
IV.26(3)	Right to rectification of inaccurate personal data	The data controller shall —	Functional	No Relationship	N/A	N/A	N/A	0	
IV.26(3)(a)	Right to rectification of inaccurate personal data	communicate any rectification of personal data to each recipient to whom the personal data has been disclosed unless this proves impossible or involves disproportionate effort; and	Functional	Intersects With	Notice of Correction or Processing Change	PRI-06.2	Mechanisms exist to notify affected data subjects if their Personal Data (PD) has been corrected, amended or deleted.	5	
IV.26(3)(b)	Right to rectification of inaccurate personal data	inform the data subject of those recipients referred to in paragraph (a) where the data subject requests the information.	Functional	Intersects With	Notice of Correction or Processing Change	PRI-06.2	Mechanisms exist to notify affected data subjects if their Personal Data (PD) has been corrected, amended or deleted.	5	
IV.27	Right to object to processing	N/A	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
IV.27(1)	Right to object to processing	A data subject is entitled at any time, by notice in writing to a data controller, to object, on grounds relating to his particular situation, to the processing and profiling of personal data under section 6(1)(b)(iv) and (v).	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
IV.27(2)	Right to object to processing	The data controller shall, within twenty-one days of receiving a notice under subsection (1), comply with the notice unless the data controller demonstrates compelling legitimate grounds for the processing which override the fundamental rights and freedoms of the data subject or for the purpose of legal proceedings.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.27(3)	Right to object to processing	Where, in accordance with subsection (2), the data controller refuses to comply with a notice under subsection (1), the data controller shall provide to the data subject the reasons for the non-compliance with the notice.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
IV.27(4)	Right to object to processing	If, on the application of a data subject who has given notice under subsection (1), the Commissioner is satisfied that the data controller in question has failed to comply with the notice, the Commissioner may issue an enforcement notice under section 73.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.27(5)	Right to object to processing	The failure by a data subject to exercise the right conferred by subsection (1) does not affect any other right conferred on the data subject by this Act.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.28	Right to erasure of personal data	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.28(1)	Right to erasure of personal data	Pursuant to subsection (2), the data subject has the right to require the data controller to erase personal data concerning him without undue delay.	Functional	Intersects With	Right to Erasure	PRI-06.5	Mechanisms exist to maintain a process to erase a data subject's Personal Data (PD), in accordance with applicable laws, regulations and contractual obligations pertaining to the retention of their PD.	5	
IV.28(2)	Right to erasure of personal data	The data controller shall erase personal data without undue delay where one of the following grounds applies —	Functional	Intersects With	Right to Erasure	PRI-06.5	Mechanisms exist to maintain a process to erase a data subject's Personal Data (PD), in accordance with applicable laws, regulations and contractual obligations pertaining to the retention of their PD.	5	
IV.28(2)(a)	Right to erasure of personal data	the personal data is no longer necessary in relation to the purposes for which it was collected or otherwise processed;	Functional	Intersects With	Right to Erasure	PRI-06.5	Mechanisms exist to maintain a process to erase a data subject's Personal Data (PD), in accordance with applicable laws, regulations and contractual obligations pertaining to the retention of their PD.	5	
IV.28(2)(b)	Right to erasure of personal data	the data subject withdraws consent where the processing occurs in accordance with section 6(1)(a) or section 36(1)(a), and where there is no other legal ground for the processing;	Functional	Intersects With	Right to Erasure	PRI-06.5	Mechanisms exist to maintain a process to erase a data subject's Personal Data (PD), in accordance with applicable laws, regulations and contractual obligations pertaining to the retention of their PD.	5	
IV.28(2)(c)	Right to erasure of personal data	the data subject objects to the processing pursuant to section 27 and there are no overriding legitimate grounds for the processing, or the data subject does not consent to the processing pursuant to section 36;	Functional	Intersects With	Right to Erasure	PRI-06.5	Mechanisms exist to maintain a process to erase a data subject's Personal Data (PD), in accordance with applicable laws, regulations and contractual obligations pertaining to the retention of their PD.	5	
IV.28(2)(d)	Right to erasure of personal data	the personal data has been unlawfully processed; or	Functional	Intersects With	Right to Erasure	PRI-06.5	Mechanisms exist to maintain a process to erase a data subject's Personal Data (PD), in accordance with applicable laws, regulations and contractual obligations pertaining to the retention of their PD.	5	
IV.28(2)(e)	Right to erasure of personal data	the personal data has to be erased in compliance with a legal obligation in The Bahamas to which the data controller is subject.	Functional	Intersects With	Right to Erasure	PRI-06.5	Mechanisms exist to maintain a process to erase a data subject's Personal Data (PD), in accordance with applicable laws, regulations and contractual obligations pertaining to the retention of their PD.	5	
IV.28(3)	Right to erasure of personal data	A data controller who has made the personal data of the data subject public, shall —	Functional	No Relationship	N/A	N/A	N/A	0	
IV.28(3)(a)	Right to erasure of personal data	erase the personal data of the data subject pursuant to this section;	Functional	Intersects With	Sensitive / Regulated Data Spill Response	IRO-12	Mechanisms exist to respond to sensitive and/or regulated data spills.	5	
IV.28(3)(b)	Right to erasure of personal data	in considering the available technology and cost, take reasonable steps to inform other data controllers who are processing the personal data of the data subject, that the data subject has requested —	Functional	Intersects With	Sensitive / Regulated Data Spill Response	IRO-12	Mechanisms exist to respond to sensitive and/or regulated data spills.	5	
IV.28(3)(b)(i)	Right to erasure of personal data	the erasure of the personal data;	Functional	Intersects With	Sensitive / Regulated Data Spill Response	IRO-12	Mechanisms exist to respond to sensitive and/or regulated data spills.	5	
IV.28(3)(b)(ii)	Right to erasure of personal data	the removal of the personal data from all internet links; and	Functional	Intersects With	Sensitive / Regulated Data Spill Response	IRO-12	Mechanisms exist to respond to sensitive and/or regulated data spills.	5	
IV.28(3)(b)(iii)	Right to erasure of personal data	the destruction of all copies of the personal data.	Functional	Intersects With	Sensitive / Regulated Data Spill Response	IRO-12	Mechanisms exist to respond to sensitive and/or regulated data spills.	5	
IV.28(4)	Right to erasure of personal data	The right of the data subject to have the personal data erased under this section, is overridden by the data controller to the extent that processing of the personal data is necessary for —	Functional	Intersects With	Right to Erasure	PRI-06.5	Mechanisms exist to maintain a process to erase a data subject's Personal Data (PD), in accordance with applicable laws, regulations and contractual obligations pertaining to the retention of their PD.	5	
IV.28(4)(a)	Right to erasure of personal data	exercising the right to freedom of expression and information;	Functional	Intersects With	Right to Erasure	PRI-06.5	Mechanisms exist to maintain a process to erase a data subject's Personal Data (PD), in accordance with applicable laws, regulations and contractual obligations pertaining to the retention of their PD.	5	
IV.28(4)(b)	Right to erasure of personal data	complying with a legal obligation that requires the processing of personal data by a written law to which the data controller is subject or for the performance of a task carried out in the public interest or in the exercise of the authority vested in the data controller;	Functional	Intersects With	Right to Erasure	PRI-06.5	Mechanisms exist to maintain a process to erase a data subject's Personal Data (PD), in accordance with applicable laws, regulations and contractual obligations pertaining to the retention of their PD.	5	
IV.28(4)(c)	Right to erasure of personal data	reasons of public interest, specifically, public health;	Functional	Intersects With	Right to Erasure	PRI-06.5	Mechanisms exist to maintain a process to erase a data subject's Personal Data (PD), in accordance with applicable laws, regulations and contractual obligations pertaining to the retention of their PD.	5	
IV.28(4)(d)	Right to erasure of personal data	archiving for the purposes of research, history or statistics in accordance with section 60; or	Functional	Intersects With	Right to Erasure	PRI-06.5	Mechanisms exist to maintain a process to erase a data subject's Personal Data (PD), in accordance with applicable laws, regulations and contractual obligations pertaining to the retention of their PD.	5	
IV.28(4)(e)	Right to erasure of personal data	the purpose of legal proceedings.	Functional	Intersects With	Right to Erasure	PRI-06.5	Mechanisms exist to maintain a process to erase a data subject's Personal Data (PD), in accordance with applicable laws, regulations and contractual obligations pertaining to the retention of their PD.	5	
IV.28(5)	Right to erasure of personal data	The data controller shall —	Functional	No Relationship	N/A	N/A	N/A	0	
IV.28(5)(a)	Right to erasure of personal data	communicate any erasure of personal data to each recipient to whom the personal data has been disclosed unless this proves impossible or involves disproportionate effort; and	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
IV.28(5)(b)	Right to erasure of personal data	inform the data subject of those recipients referred to in paragraph (a) where the data subject requests the information.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
IV.29	Right to restrict the processing of personal data	N/A	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
IV.29(1)	Right to restrict the processing of personal data	The data subject shall have the right to require the data controller to restrict the processing of the personal data of the data subject if —	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
IV.29(1)(a)	Right to restrict the processing of personal data	the accuracy of the personal data is contested by the data subject;	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
IV.29(1)(b)	Right to restrict the processing of personal data	the processing is unlawful;	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
IV.29(1)(c)	Right to restrict the processing of personal data	the data subject objects to the erasure of the personal data;	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
IV.29(1)(d)	Right to restrict the processing of personal data	the data controller no longer needs the personal data for the purposes of the processing;	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
IV.29(1)(e)	Right to restrict the processing of personal data	the personal data is required by the data subject for the purpose of legal proceedings;	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
IV.29(1)(f)	Right to restrict the processing of personal data	the data subject has, pursuant to section 27, objected to processing pending the verification of whether there exists legitimate grounds of the data controller to override the rights of the request of the data subject.	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
IV.29(2)	Right to restrict the processing of personal data	Where processing has been restricted under subsection (1), the personal data of the data subject shall, with the exception of storage, only be processed —	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
IV.29(2)(a)	Right to restrict the processing of personal data	with the data subject's consent;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.29(2)(b)	Right to restrict the processing of personal data	for the purpose of legal proceedings;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.29(2)(c)	Right to restrict the processing of personal data	for the protection of the rights of another person; or	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.29(2)(d)	Right to restrict the processing of personal data	for reasons of public interest.	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.29(3)	Right to restrict the processing of personal data	The data controller shall —	Functional	No Relationship	N/A	N/A	N/A	0	
IV.29(3)(a)	Right to restrict the processing of personal data	communicate the restriction of the processing of personal data of the data subject, to each recipient to whom the personal data has been disclosed, unless the communication to the recipient proves impossible or involves disproportionate effort; and	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
IV.29(3)(b)	Right to restrict the processing of personal data	inform the data subject of the recipients to whom the personal data of the data subject has been disclosed.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
IV.30	Right to prevent data processing	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.30(1)	Right to prevent data processing	Subject to subsection (2), a data subject shall, by written notice, require the data controller to cease, or not to begin the processing of the personal data of the data subject, whether or not the processing of the personal data is for a specified purpose or processed in a specified manner, on the ground that —	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
IV.30(1)(a)	Right to prevent data processing	the processing of the personal data of the data subject by the data controller, is causing or is likely to cause, substantial damage or distress to the data subject or another identifiable natural person;	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
IV.30(1)(b)	Right to prevent data processing	the substantial damage or distress to the data subject or another identifiable natural person is or would be unwarranted.	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
IV.30(2)	Right to prevent data processing	Subsection (1) does not apply —	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
IV.30(2)(a)	Right to prevent data processing	in a case where the conditions specified in section 6(1)(a) or 6(1)(b) (i) to (iv) are satisfied; or	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
IV.30(2)(b)	Right to prevent data processing	in other cases as the Minister may prescribe by order.	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
IV.30(3)	Right to prevent data processing	A data subject who is desirous of exercising his right under this section, shall comply with the regulations made under this Act.	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
IV.31	Right to compensation	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.32	Conditions for consent	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.32(1)	Conditions for consent	Where the processing of personal data is based on the consent of the data subject, the data controller shall provide clear and verifiable evidence that the data subject has given consent to the processing of his personal data.	Functional	Intersects With	Data Subject Consent	PRI-03	Mechanisms exist to enable data subjects to authorize the collection, receipt, processing, storage, transmission, sharing, updating and/or disposal of their Personal Data (PD), where the data subject is provided, prior to collection, with: (1) Plain language explaining the potential data privacy risks of the authorization; (2) A means to decline the authorization; and (3) Necessary choice and consent-related criteria required by applicable statutory, regulatory and contractual obligations.	5	
IV.32(2)	Conditions for consent	Where the consent of the data subject is given in a written declaration that also deals with other matters, the request for consent must be presented —	Functional	Intersects With	Data Subject Consent	PRI-03	Mechanisms exist to enable data subjects to authorize the collection, receipt, processing, storage, transmission, sharing, updating and/or disposal of their Personal Data (PD), where the data subject is provided, prior to collection, with: (1) Plain language explaining the potential data privacy risks of the authorization; (2) A means to decline the authorization; and (3) Necessary choice and consent-related criteria required by applicable statutory, regulatory and contractual obligations.	5	
IV.32(2)(a)	Conditions for consent	in a manner that is clearly distinguishable from the other matters;	Functional	Intersects With	Data Subject Consent	PRI-03	Mechanisms exist to enable data subjects to authorize the collection, receipt, processing, storage, transmission, sharing, updating and/or disposal of their Personal Data (PD), where the data subject is provided, prior to collection, with: (1) Plain language explaining the potential data privacy risks of the authorization; (2) A means to decline the authorization; and (3) Necessary choice and consent-related criteria required by applicable statutory, regulatory and contractual obligations.	5	
IV.32(2)(b)	Conditions for consent	intelligibly and in an easily accessible form; and	Functional	Intersects With	Data Subject Consent	PRI-03	Mechanisms exist to enable data subjects to authorize the collection, receipt, processing, storage, transmission, sharing, updating and/or disposal of their Personal Data (PD), where the data subject is provided, prior to collection, with: (1) Plain language explaining the potential data privacy risks of the authorization; (2) A means to decline the authorization; and (3) Necessary choice and consent-related criteria required by applicable statutory, regulatory and contractual obligations.	5	
IV.32(2)(c)	Conditions for consent	using clear and plain language.	Functional	Intersects With	Data Subject Consent	PRI-03	Mechanisms exist to enable data subjects to authorize the collection, receipt, processing, storage, transmission, sharing, updating and/or disposal of their Personal Data (PD), where the data subject is provided, prior to collection, with: (1) Plain language explaining the potential data privacy risks of the authorization; (2) A means to decline the authorization; and (3) Necessary choice and consent-related criteria required by applicable statutory, regulatory and contractual obligations.	5	
IV.32(3)	Conditions for consent	The data controller, prior to the giving of consent by a data subject, shall inform the data subject of his right to withdraw his consent.	Functional	Intersects With	Data Subject Consent	PRI-03	Mechanisms exist to enable data subjects to authorize the collection, receipt, processing, storage, transmission, sharing, updating and/or disposal of their Personal Data (PD), where the data subject is provided, prior to collection, with: (1) Plain language explaining the potential data privacy risks of the authorization; (2) A means to decline the authorization; and (3) Necessary choice and consent-related criteria required by applicable statutory, regulatory and contractual obligations.	5	
IV.32(4)	Conditions for consent	A data subject has the right to withdraw his consent in respect of the processing of his personal data, at any time.	Functional	Intersects With	Data Subject Consent	PRI-03	Mechanisms exist to enable data subjects to authorize the collection, receipt, processing, storage, transmission, sharing, updating and/or disposal of their Personal Data (PD), where the data subject is provided, prior to collection, with: (1) Plain language explaining the potential data privacy risks of the authorization; (2) A means to decline the authorization; and (3) Necessary choice and consent-related criteria required by applicable statutory, regulatory and contractual obligations.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
IV.32(5)	Conditions for consent	The withdrawal of consent by the data subject does not affect the lawfulness of the processing of the personal data, based on the consent given by the data subject prior to withdrawal.	Functional	Intersects With	Data Subject Consent	PRI-03	Mechanisms exist to enable data subjects to authorize the collection, receipt, processing, storage, transmission, sharing, updating and/or disposal of their Personal Data (PD), where the data subject is provided, prior to collection, with: (1) Plain language explaining the potential data privacy risks of the authorization; (2) A means to decline the authorization; and (3) Necessary choice and consent-related criteria required by applicable statutory, regulatory and contractual obligations.	5	
IV.32(6)	Conditions for consent	For the purposes of determining whether a data subject freely gives consent to the processing of personal data, the data controller shall take into account whether the consent of the data subject is conditional to the performance of a contract and the service provided in the contract.	Functional	Intersects With	Data Subject Consent	PRI-03	Mechanisms exist to enable data subjects to authorize the collection, receipt, processing, storage, transmission, sharing, updating and/or disposal of their Personal Data (PD), where the data subject is provided, prior to collection, with: (1) Plain language explaining the potential data privacy risks of the authorization; (2) A means to decline the authorization; and (3) Necessary choice and consent-related criteria required by applicable statutory, regulatory and contractual obligations.	5	
IV.33	Special conditions for consent of a child or a vulnerable person	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.33(1)	Special conditions for consent of a child or a vulnerable person	Where a data subject is a child or a vulnerable person, the rights of the child or vulnerable person may be exercised by the parent or legal guardian of the child or the legal guardian of the vulnerable person.	Functional	Intersects With	Parent or Guardian Opt-In Consent For Minors	PRI-03.13	Mechanisms exist to obtain parental or guardian consent for Personal Data (PD) processing actions through reasonable consumer expectations, when the data subject is a minor.	5	
IV.33(2)	Special conditions for consent of a child or a vulnerable person	The data controller shall not process the personal data of a child or vulnerable person unless consent is given by the parent or legal guardian of the child or the legal guardian of a vulnerable person.	Functional	Intersects With	Parent or Guardian Opt-In Consent For Minors	PRI-03.13	Mechanisms exist to obtain parental or guardian consent for Personal Data (PD) processing actions through reasonable consumer expectations, when the data subject is a minor.	5	
IV.33(3)	Special conditions for consent of a child or a vulnerable person	A data controller shall make every reasonable effort, to verify that consent is given or authorized by the parent or legal guardian of a child or the legal guardian of a vulnerable person.	Functional	Intersects With	Parent or Guardian Opt-In Consent For Minors	PRI-03.13	Mechanisms exist to obtain parental or guardian consent for Personal Data (PD) processing actions through reasonable consumer expectations, when the data subject is a minor.	5	
IV.33(4)	Special conditions for consent of a child or a vulnerable person	A data controller shall take appropriate measures to verify — in the processing of personal data under this section.	Functional	Intersects With	Parent or Guardian Opt-In Consent For Minors	PRI-03.13	Mechanisms exist to obtain parental or guardian consent for Personal Data (PD) processing actions through reasonable consumer expectations, when the data subject is a minor.	5	
IV.33(4)(a)	Special conditions for consent of a child or a vulnerable person	the age of a child;	Functional	Intersects With	Parent or Guardian Opt-In Consent For Minors	PRI-03.13	Mechanisms exist to obtain parental or guardian consent for Personal Data (PD) processing actions through reasonable consumer expectations, when the data subject is a minor.	5	
IV.33(4)(b)	Special conditions for consent of a child or a vulnerable person	the consent of the parent or legal guardian of the child;	Functional	Intersects With	Parent or Guardian Opt-In Consent For Minors	PRI-03.13	Mechanisms exist to obtain parental or guardian consent for Personal Data (PD) processing actions through reasonable consumer expectations, when the data subject is a minor.	5	
IV.33(4)(c)	Special conditions for consent of a child or a vulnerable person	the consent of the legal guardian of the vulnerable person,	Functional	Intersects With	Parent or Guardian Opt-In Consent For Minors	PRI-03.13	Mechanisms exist to obtain parental or guardian consent for Personal Data (PD) processing actions through reasonable consumer expectations, when the data subject is a minor.	5	
IV.33(5)	Special conditions for consent of a child or a vulnerable person	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.34	Conditions for processing sensitive personal data	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.34(1)	Conditions for processing sensitive personal data	The sensitive personal data of a data subject shall not be processed without the consent in writing of the data subject.	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)	Conditions for processing sensitive personal data	Notwithstanding subsection (1), the processing of the sensitive personal data of the data subject shall be processed by the data controller, where the sensitive personal data is necessary for —	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(a)	Conditions for processing sensitive personal data	the purposes of exercising or performing a right, or obligation, conferred or imposed by a written law on the data controller, in connection with the employment of the data subject;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(b)	Conditions for processing sensitive personal data	the purpose of legal proceedings;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(c)	Conditions for processing sensitive personal data	the purpose of obtaining legal advice;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(d)	Conditions for processing sensitive personal data	the purposes of establishing, exercising or defending legal rights;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(e)	Conditions for processing sensitive personal data	medical purposes and is undertaken by —	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(e)(i)	Conditions for processing sensitive personal data	a health care professional; or	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(e)(ii)	Conditions for processing sensitive personal data	a person who owes a duty of confidentiality equivalent to that which would arise if that person were a health care professional;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(f)	Conditions for processing sensitive personal data	the work of a court or tribunal;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
IV.34(2)(g)	Conditions for processing sensitive personal data	the administration of justice;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(h)	Conditions for processing sensitive personal data	the exercise of functions conferred on any person by or under a written law;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(i)	Conditions for processing sensitive personal data	the exercise of functions of the Crown, Parliament or a public body;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(j)	Conditions for processing sensitive personal data	the processing for archiving purposes in the public interest and for the purposes of scientific or historical research or statistical purposes;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(k)	Conditions for processing sensitive personal data	the purposes of the preventing or detecting any unlawful act including offences of fraud, money-laundering and terrorism;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(l)	Conditions for processing sensitive personal data	providing confidential counselling, advice or support or of another similar service which is provided confidentially;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(m)	Conditions for processing sensitive personal data	protecting an identifiable natural person from neglect or physical, mental or emotional harm, where an identifiable natural person is under the age of eighteen or is otherwise susceptible to emotional harm;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(n)	Conditions for processing sensitive personal data	the exercise of a protective function which is intended to protect members of the public against —	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(n)(i)	Conditions for processing sensitive personal data	dishonesty, malpractice or other seriously improper conduct;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(n)(ii)	Conditions for processing sensitive personal data	unfitness or incompetence;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(n)(iii)	Conditions for processing sensitive personal data	mismanagement in the administration of a body or association; or	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(n)(iv)	Conditions for processing sensitive personal data	failures in services provided by a body or association;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(o)	Conditions for processing sensitive personal data	the purposes of complying with, or assisting another person to comply with, a regulatory requirement which involves a person taking steps to establish whether another person has —	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(o)(a)	Conditions for processing sensitive personal data	committed an unlawful act; or	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(o)(b)	Conditions for processing sensitive personal data	been involved in dishonesty, malpractice or other seriously improper conduct;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(p)	Conditions for processing sensitive personal data	reasons of substantial public interest and the processing of sensitive personal data —	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(p)(i)	Conditions for processing sensitive personal data	consists of the disclosure of sensitive personal data for the special purposes;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
IV.34(2)(p)(i)	Conditions for processing sensitive personal data	is carried out in connection with any of the matters, whether alleged or established —	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(p)(i)(aa)	Conditions for processing sensitive personal data	the commission of an unlawful act by a person;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(p)(i)(bb)	Conditions for processing sensitive personal data	dishonesty, malpractice or other seriously improper conduct of a person;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(p)(i)(cc)	Conditions for processing sensitive personal data	unfitness or incompetence of a person;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(p)(i)(dd)	Conditions for processing sensitive personal data	mismanagement in the administration of a body or association;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(p)(i)(ee)	Conditions for processing sensitive personal data	a failure in services provided by a body or association;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(p)(iii)	Conditions for processing sensitive personal data	is carried out with the intention of publishing the sensitive personal data of the data subject;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(q)	Conditions for processing sensitive personal data	the purposes of the political activities of a person and the processing is —	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(q)(i)	Conditions for processing sensitive personal data	of the sensitive personal data of the data subject revealing political opinions;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(q)(ii)	Conditions for processing sensitive personal data	carried out by a person or organization;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(q)(iii)	Conditions for processing sensitive personal data	unlikely to cause substantial damage or distress to a person;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(r)	Conditions for processing sensitive personal data	the purposes of measures designed to identify or prevent doping which are undertaken by or under the responsibility of a body or association that is responsible for eliminating doping in a sport, at a sporting event or in sport generally;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(2)(s)	Conditions for processing sensitive personal data	the purposes of providing information about doping, or suspected doping, to a body or association.	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(3)	Conditions for processing sensitive personal data	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.34(4)	Conditions for processing sensitive personal data	Notwithstanding subsection (1), the processing of the sensitive personal data of the data subject is necessary in order to protect the vital interests —	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(4)(a)	Conditions for processing sensitive personal data	of the data subject or another person, in a case where consent cannot be given by or on behalf of the data subject, or the data controller cannot reasonably be expected to obtain the consent of the data subject; or	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(4)(b)	Conditions for processing sensitive personal data	of another person, in a case where consent by or on behalf of the data subject has been unreasonably withheld.	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
IV.34(5)	Conditions for processing sensitive personal data	Notwithstanding subsection (1), the processing of the sensitive personal data of the data subject may be carried out —	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(5)(a)	Conditions for processing sensitive personal data	by the data controller in the course of its legitimate activities by a body, or association, that is not established or conducted for profit, and exists for political, philosophical, religious or trade union purposes;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(5)(b)	Conditions for processing sensitive personal data	by the data controller with appropriate safeguards for the rights and freedoms of the data subject;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(5)(c)	Conditions for processing sensitive personal data	where the processing of sensitive data relates only to identifiable natural persons who are members of the non-profit organization or who maintain regular and direct contact with the organization in furtherance of, or directly related to, its stated purposes, objectives or initiatives; and	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(5)(d)	Conditions for processing sensitive personal data	where the processing of sensitive data does not involve disclosure of the personal data to a third party without the consent of the data subject.	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(6)	Conditions for processing sensitive personal data	The sensitive personal data of a data subject may be processed where the information contained in the sensitive personal of the data subject has been made public, as a result of steps taken by the data subject.	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV.34(7)	Conditions for processing sensitive personal data	The Minister may, upon the recommendation of the Commissioner, specify by order, other circumstances where sensitive personal data of the data subject may be processed.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.35	Sensitive personal data relating to health	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.35(1)	Sensitive personal data relating to health	Sensitive personal data relating to the health of a data subject, may only be processed with the consent of data subject and processed —	Functional	Intersects With	Continued Use of Personal Data (PD)	PRI-03.9	Mechanisms exist to govern the continued use of Personal Data (PD) as it is collected, received, processed, stored, transmitted, shared and/or updated until: (1) Disposal of PD occurs when there is no longer a legitimate business purpose; (2) Disposal of PD occurs when the data retention timeline for the use case is met; and/or (3) Continued use of PD is prohibited upon withdrawal of data subject consent.	5	
IV.35(1)(a)	Sensitive personal data relating to health	by or under the responsibility of a health care professional; or	Functional	Intersects With	Continued Use of Personal Data (PD)	PRI-03.9	Mechanisms exist to govern the continued use of Personal Data (PD) as it is collected, received, processed, stored, transmitted, shared and/or updated until: (1) Disposal of PD occurs when there is no longer a legitimate business purpose; (2) Disposal of PD occurs when the data retention timeline for the use case is met; and/or (3) Continued use of PD is prohibited upon withdrawal of data subject consent.	5	
IV.35(1)(b)	Sensitive personal data relating to health	by a person subject to the obligation of professional secrecy under a written law.	Functional	Intersects With	Continued Use of Personal Data (PD)	PRI-03.9	Mechanisms exist to govern the continued use of Personal Data (PD) as it is collected, received, processed, stored, transmitted, shared and/or updated until: (1) Disposal of PD occurs when there is no longer a legitimate business purpose; (2) Disposal of PD occurs when the data retention timeline for the use case is met; and/or (3) Continued use of PD is prohibited upon withdrawal of data subject consent.	5	
IV.35(2)	Sensitive personal data relating to health	Notwithstanding subsection (1), sensitive personal data relating to the health of a data subject may be processed, where the processing is —	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	5	
IV.35(2)(a)	Sensitive personal data relating to health	necessary for reasons of public interest in the area of public health; or	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	5	
IV.35(2)(b)	Sensitive personal data relating to health	carried out by another person who in the circumstances owes a duty of confidentiality under a written law.	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	5	
IV.36	Consent required for direct marketing	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.36(1)	Consent required for direct marketing	A data controller shall not process personal data of the data subject for the purpose of direct marketing unless the data subject consents to the processing of his personal data for that purpose.	Functional	Intersects With	Continued Use of Personal Data (PD)	PRI-03.9	Mechanisms exist to govern the continued use of Personal Data (PD) as it is collected, received, processed, stored, transmitted, shared and/or updated until: (1) Disposal of PD occurs when there is no longer a legitimate business purpose; (2) Disposal of PD occurs when the data retention timeline for the use case is met; and/or (3) Continued use of PD is prohibited upon withdrawal of data subject consent.	5	
IV.36(2)	Consent required for direct marketing	A data controller shall request the consent of a data subject in the prescribed manner, and shall not approach a data subject more than once to request that consent.	Functional	Intersects With	Data Subject Consent	PRI-03	Mechanisms exist to enable data subjects to authorize the collection, receipt, processing, storage, transmission, sharing, updating and/or disposal of their Personal Data (PD), where the data subject is provided, prior to collection, with: (1) Plain language explaining the potential data privacy risks of the authorization; (2) A means to decline the authorization; and (3) Necessary choice and consent-related criteria required by applicable statutory, regulatory and contractual obligations.	5	
IV.36(3)	Consent required for direct marketing	A data controller may process the personal data of a data subject who is a customer of that data controller for the purpose of direct marketing —	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	5	
IV.36(3)(a)	Consent required for direct marketing	if the data controller has obtained the contact details of the data subject in the context of the sale of any goods or services;	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	5	
IV.36(3)(b)	Consent required for direct marketing	of the data controller's own goods or services; and	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
IV.36(3)(c)	Consent required for direct marketing	if the data subject has been given a reasonable opportunity to object, free of charge in the prescribed manner, to the use of the data subject's personal data —	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	5	
IV.36(3)(c)(i)	Consent required for direct marketing	at the time the personal data was collected; and	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	5	
IV.36(3)(c)(ii)	Consent required for direct marketing	on the occasion of each communication with the data subject for the purpose of direct marketing.	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	5	
IV.36(4)	Consent required for direct marketing	A communication to a data subject for the purpose of direct marketing shall contain —	Functional	Intersects With	Data Subject Communications	PRI-17	Mechanisms exist to craft disclosures and communications to data subjects in a manner that is concise, unambiguous and understandable by a reasonable person.	5	
IV.36(4)(a)	Consent required for direct marketing	the details of the identity of the sender or the person on whose behalf the communication has been sent; and	Functional	Intersects With	Data Subject Communications	PRI-17	Mechanisms exist to craft disclosures and communications to data subjects in a manner that is concise, unambiguous and understandable by a reasonable person.	5	
IV.36(4)(b)	Consent required for direct marketing	an address or other contact details to which the data subject may send an objection to the use of his personal data for the purpose of direct marketing.	Functional	Intersects With	Data Subject Communications	PRI-17	Mechanisms exist to craft disclosures and communications to data subjects in a manner that is concise, unambiguous and understandable by a reasonable person.	5	
IV.36(5)	Consent required for direct marketing	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
V	DATA CONTROLLERS AND DATA PROCESSORS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
V.37	Registration of data controllers and data processors	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
V.38	Application for registration	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
V.39	Registration certificate	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
V.40	Renewal of registration certificate	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
V.41	Register of Data Controllers	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
V.41(1)	Register of Data Controllers	The Commissioner shall maintain a register, to be called the Register of Data Controllers, in which he shall cause to be entered in relation to each data controller registered under this Act, the following particulars —	Functional	Intersects With	Register As A Data Controller and/or Data Processor	PRI-15	Mechanisms exist to register as a data controller and/or data processor, including registering databases containing Personal Data (PD) with the appropriate Data Authority, when necessary.	5	
V.41(1)(a)	Register of Data Controllers	the name, address and contact information of the data controller;	Functional	Intersects With	Register As A Data Controller and/or Data Processor	PRI-15	Mechanisms exist to register as a data controller and/or data processor, including registering databases containing Personal Data (PD) with the appropriate Data Authority, when necessary.	5	
V.41(1)(b)	Register of Data Controllers	the date of registration of the data controller;	Functional	Intersects With	Register As A Data Controller and/or Data Processor	PRI-15	Mechanisms exist to register as a data controller and/or data processor, including registering databases containing Personal Data (PD) with the appropriate Data Authority, when necessary.	5	
V.41(1)(c)	Register of Data Controllers	a description of the personal data processed by or on behalf of the data controller and the categories of data subject to which they relate;	Functional	Intersects With	Register As A Data Controller and/or Data Processor	PRI-15	Mechanisms exist to register as a data controller and/or data processor, including registering databases containing Personal Data (PD) with the appropriate Data Authority, when necessary.	5	
V.41(1)(d)	Register of Data Controllers	a description of the purposes for which the personal data is processed;	Functional	Intersects With	Register As A Data Controller and/or Data Processor	PRI-15	Mechanisms exist to register as a data controller and/or data processor, including registering databases containing Personal Data (PD) with the appropriate Data Authority, when necessary.	5	
V.41(1)(e)	Register of Data Controllers	a description of the recipients to whom the data controller intends or desires to disclose the personal data;	Functional	Intersects With	Register As A Data Controller and/or Data Processor	PRI-15	Mechanisms exist to register as a data controller and/or data processor, including registering databases containing Personal Data (PD) with the appropriate Data Authority, when necessary.	5	
V.41(1)(f)	Register of Data Controllers	the names, or a description of the country outside of The Bahamas, to which the data controller directly or indirectly transfers, or intends to transfer, either directly or indirectly, the personal data; and	Functional	Intersects With	Register As A Data Controller and/or Data Processor	PRI-15	Mechanisms exist to register as a data controller and/or data processor, including registering databases containing Personal Data (PD) with the appropriate Data Authority, when necessary.	5	
V.41(1)(g)	Register of Data Controllers	the name, address and contact information of each registered data controller who is nominated as a representative for a data controller who is not established in The Bahamas.	Functional	Intersects With	Register As A Data Controller and/or Data Processor	PRI-15	Mechanisms exist to register as a data controller and/or data processor, including registering databases containing Personal Data (PD) with the appropriate Data Authority, when necessary.	5	
V.41(2)	Register of Data Controllers	The data controller shall give written notice to the Commissioner, of any changes which may affect the particulars entered in the Register of Data Controllers as it relates to the data controller.	Functional	Intersects With	Register As A Data Controller and/or Data Processor	PRI-15	Mechanisms exist to register as a data controller and/or data processor, including registering databases containing Personal Data (PD) with the appropriate Data Authority, when necessary.	5	
V.41(3)	Register of Data Controllers	The Register of Data Controllers shall be a public document and available for inspection at all reasonable times by a person upon payment of the prescribed fee.	Functional	Intersects With	Register As A Data Controller and/or Data Processor	PRI-15	Mechanisms exist to register as a data controller and/or data processor, including registering databases containing Personal Data (PD) with the appropriate Data Authority, when necessary.	5	
V.41(4)	Register of Data Controllers	The Commissioner shall ensure that the Register of Data Controllers is kept accurate and up to date.	Functional	No Relationship	N/A	N/A	N/A	0	
V.42	Register of Data Processors	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
V.42(1)	Register of Data Processors	The Commissioner shall maintain a register, to be called the Register of Data Processors, in which he shall cause to be entered in relation to each data processor registered under this Act, the following particulars —	Functional	No Relationship	N/A	N/A	N/A	0	
V.42(1)(a)	Register of Data Processors	the name, address and other contact information of the data processor;	Functional	No Relationship	N/A	N/A	N/A	0	
V.42(1)(b)	Register of Data Processors	the date of registration of the data processor;	Functional	No Relationship	N/A	N/A	N/A	0	
V.42(1)(c)	Register of Data Processors	a description of the personal data processed by the data processor on behalf of the data controller and the categories of data subject to which they relate;	Functional	No Relationship	N/A	N/A	N/A	0	
V.42(1)(d)	Register of Data Processors	a description of the purposes for which the personal data is processed;	Functional	No Relationship	N/A	N/A	N/A	0	
V.42(1)(e)	Register of Data Processors	a description of the recipients to whom the data processor intends or desires to disclose the personal data;	Functional	No Relationship	N/A	N/A	N/A	0	
V.42(1)(f)	Register of Data Processors	the names, or a description of, the country outside of The Bahamas to which the data processor directly or indirectly transfers, or intends to transfer, either directly or indirectly, the personal data; and	Functional	No Relationship	N/A	N/A	N/A	0	
V.42(1)(g)	Register of Data Processors	the name, address and contact information of each registered data processor who is nominated as a representative for a data processor who is not established in The Bahamas.	Functional	No Relationship	N/A	N/A	N/A	0	
V.42(2)	Register of Data Processors	The data processor shall give written notice to the Commissioner of any changes which may affect the particulars entered in the Register of Data Processors as it relates to the data processor.	Functional	No Relationship	N/A	N/A	N/A	0	
V.42(3)	Register of Data Processors	The Register of Data Processors shall be a public document and available for inspection at all reasonable times by any person upon payment of the prescribed fee.	Functional	No Relationship	N/A	N/A	N/A	0	
V.42(4)	Register of Data Processors	The Commissioner shall ensure that the Register of Data Processors is kept accurate and up to date.	Functional	No Relationship	N/A	N/A	N/A	0	
V.43	Data processing records	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
V.43(1)	Data processing records	A data controller and where applicable, the data controller's representative shall keep and maintain, in writing or by electronic means, a record of data processing activities under its responsibility.	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
V.43(2)	Data processing records	A record maintained by a data controller under subsection (1) shall contain —	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
V.43(2)(a)	Data processing records	the name and contact details of the data controller and the data controller's representative and the name and contact details of the data protection officer;	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
V.43(2)(b)	Data processing records	the purposes of the processing of the personal data;	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
V.43(2)(c)	Data processing records	a description of the categories of data subjects and of the categories of personal data;	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
V.43(2)(d)	Data processing records	a description of the categories of recipients to whom the personal data has been or will be disclosed;	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
V.43(2)(e)	Data processing records	a description of the recipients in other countries or international organizations to whom the personal data has been or will be disclosed;	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
V.43(2)(f)	Data processing records	information on the transfers of personal data by the data processor or by the data processor on behalf of the data controller, to another country or an international organization;	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
V.43(2)(g)	Data processing records	the identification of the country or international organization where the personal data was transferred by data processor under to section 53;	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
V.43(2)(h)	Data processing records	the documentation of the adequate level of protection for the rights and freedoms of data subjects in relation to the processing of personal data;	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
V.43(2)(i)	Data processing records	the envisaged time limits for erasure of the different categories of personal data; and	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
V.43(2)(j)	Data processing records	a general description of the technical and organizational measures referred to in section 52(2).	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
V.43(3)	Data processing records	A data controller shall, upon the request of the Commissioner, make data processing records available to the Commissioner.	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
V.43(4)	Data processing records	A data processor and where applicable, the data processor's representative shall maintain, in writing or by electronic means, a record of all categories of processing activities carried out on behalf of a data controller, which shall contain —	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
V.43(4)(a)	Data processing records	the name and contact details of the data processor and each data controller on behalf of whom the data processor is acting, and where applicable, the name and contact details of the representative of the data controller or the data processor and the name and contact details of the data protection officer;	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
V.43(4)(b)	Data processing records	the categories of processing carried out on behalf of each data controller;	Functional	Intersects With	Personal Data (PD) Categories	PRI-05.7	Mechanisms exist to define and implement data handling and protection requirements for specific categories of sensitive Personal Data (PD).	5	
V.43(4)(b)	Data processing records	the categories of processing carried out on behalf of each data controller;	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
V.43(4)(c)	Data processing records	information on transfers of personal data to another country or an international organization under section 53;	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
V.43(4)(c)	Data processing records	information on transfers of personal data to another country or an international organization under section 53;	Functional	Intersects With	Accounting of Disclosures	PRI-14.1	Mechanisms exist to provide data subjects with an accounting of disclosures of their Personal Data (PD) controlled by: (1) The organization; and/or (2) Relevant third-parties that their PD was shared with.	5	
V.43(4)(d)	Data processing records	the documentation of the adequate level of protection for the rights and freedoms of data subjects in relation to the processing of personal data; and	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
V.43(4)(d)	Data processing records	the documentation of the adequate level of protection for the rights and freedoms of data subjects in relation to the processing of personal data; and	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
V.43(4)(e)	Data processing records	a general description of the technical and organizational measures referred to in section 52(2).	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
V.43(4)(e)	Data processing records	a general description of the technical and organizational measures referred to in section 52(2).	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
V.44	Auditing of data controllers and data processors	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
V.44(1)	Auditing of data controllers and data processors	The Commissioner may annually audit the policies of a data controller and data processor and the conduct of the processing of personal data.	Functional	No Relationship	N/A	N/A	N/A	0	
V.44(2)	Auditing of data controllers and data processors	Where a data controller or data processor has been authorised to transfer data on a server or data centre located outside of The Bahamas, the cost of reviewing or auditing the server of the data controller or data processor shall be borne by the data controller and the data processor.	Functional	No Relationship	N/A	N/A	N/A	0	
V.45	Appointment of a data protection officer	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
V.45(1)	Appointment of a data protection officer	A data controller and the data processor shall appoint a person as the data protection officer on the terms and conditions as the data controller and data processor may determine, where —	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	5	
V.45(1)(a)	Appointment of a data protection officer	the processing of personal data is carried out by a public body or private body;	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	5	
V.45(1)(b)	Appointment of a data protection officer	the core activities of the data controller or the data processor consist of processing operations which, by its nature, scope, or purposes, require regular and systematic monitoring of data subjects; or	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
V.45(1)(c)	Appointment of a data protection officer	the core activities of the data controller consist of the processing of sensitive personal data.	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	5	
V.45(2)	Appointment of a data protection officer	A data controller and data processor shall —	Functional	No Relationship	N/A	N/A	N/A	0	
V.45(2)(a)	Appointment of a data protection officer	appoint a person as a data protection officer if that person has relevant academic or professional qualifications and knowledge and technical skills in matters relating to data protection; and	Functional	Subset Of	Data Privacy Program	PRI-01	Mechanisms exist to facilitate the implementation and operation of data protection controls throughout the data lifecycle to ensure all forms of Personal Data (PD) are processed lawfully, fairly and transparently.	10	
V.45(2)(b)	Appointment of a data protection officer	support the data protection officer by providing the resources necessary to —	Functional	Subset Of	Data Privacy Program	PRI-01	Mechanisms exist to facilitate the implementation and operation of data protection controls throughout the data lifecycle to ensure all forms of Personal Data (PD) are processed lawfully, fairly and transparently.	10	
V.45(2)(b)(i)	Appointment of a data protection officer	maintain the data protection officer's expert knowledge; and	Functional	Subset Of	Data Privacy Program	PRI-01	Mechanisms exist to facilitate the implementation and operation of data protection controls throughout the data lifecycle to ensure all forms of Personal Data (PD) are processed lawfully, fairly and transparently.	10	
V.45(2)(b)(ii)	Appointment of a data protection officer	enable the data protection officer to carry out the functions provided in subsection (3).	Functional	Subset Of	Data Privacy Program	PRI-01	Mechanisms exist to facilitate the implementation and operation of data protection controls throughout the data lifecycle to ensure all forms of Personal Data (PD) are processed lawfully, fairly and transparently.	10	
V.45(3)	Appointment of a data protection officer	The functions of a data protection officer include —	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	5	
V.45(3)(a)	Appointment of a data protection officer	informing and advising the data controller or the data processor and of their obligations under this Act;	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	5	
V.45(3)(b)	Appointment of a data protection officer	informing and advising the employees of the data controller or the data processor, who carry out the processing of personal data, of their obligations under this Act;	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	5	
V.45(3)(c)	Appointment of a data protection officer	monitoring compliance with this Act and with the policies of the data controller or data processor in relation to the protection of personal data;	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	5	
V.45(3)(d)	Appointment of a data protection officer	monitoring the assignment of responsibilities, awareness-raising and training of staff involved in the processing of personal data and related audits;	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	5	
V.45(3)(e)	Appointment of a data protection officer	advising the data controller and his employees on data processing requirements that are contained in this Act or in another written law;	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	5	
V.45(3)(f)	Appointment of a data protection officer	facilitating capacity building of staff involved in the processing of personal data;	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	5	
V.45(3)(g)	Appointment of a data protection officer	providing advice on the preparation of the data protection impact assessment under section 50;	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	5	
V.45(3)(h)	Appointment of a data protection officer	acting as the contact point for the Commissioner on issues relating to the processing of personal data;	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	5	
V.45(3)(i)	Appointment of a data protection officer	acting as the contact point during consultations with the Commissioner as specified in section 50(6) to (8); and	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	5	
V.45(3)(j)	Appointment of a data protection officer	cooperating with the Commissioner on matters relating to data protection.	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	5	
V.45(4)	Appointment of a data protection officer	A data protection officer shall —	Functional	No Relationship	N/A	N/A	N/A	0	
V.45(4)(a)	Appointment of a data protection officer	not be dismissed or penalized by the data controller or data processor for performing the functions provided in subsection (3); and	Functional	Intersects With	Statutory, Regulatory & Contractual Compliance	CPL-01	Mechanisms exist to facilitate the identification and implementation of relevant statutory, regulatory and contractual controls.	5	
V.45(4)(b)	Appointment of a data protection officer	keep confidential all matters concerning the performance of his duties and functions referred to in subsection (3).	Functional	Intersects With	Statutory, Regulatory & Contractual Compliance	CPL-01	Mechanisms exist to facilitate the identification and implementation of relevant statutory, regulatory and contractual controls.	5	
V.45(5)	Appointment of a data protection officer	A data protection officer may be a member of staff of the data controller or data processor and may fulfil other duties that do not conflict with his duties as a data protection officer.	Functional	Intersects With	Statutory, Regulatory & Contractual Compliance	CPL-01	Mechanisms exist to facilitate the identification and implementation of relevant statutory, regulatory and contractual controls.	5	
V.45(6)	Appointment of a data protection officer	A person may be appointed as a data protection officer by more than one data controller or data processor on the condition that the data protection officer is accessible to each data controller or data processor.	Functional	Intersects With	Statutory, Regulatory & Contractual Compliance	CPL-01	Mechanisms exist to facilitate the identification and implementation of relevant statutory, regulatory and contractual controls.	5	
V.45(7)	Appointment of a data protection officer	A data protection officer may be appointed for one public body or two or more public bodies.	Functional	Intersects With	Statutory, Regulatory & Contractual Compliance	CPL-01	Mechanisms exist to facilitate the identification and implementation of relevant statutory, regulatory and contractual controls.	5	
V.45(8)	Appointment of a data protection officer	A data controller and a data processor shall publish the contact details of the data protection officer on its official website and provide the contact details to the Commissioner.	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
V.46	Non-disclosure of personal data	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
V.46(1)	Non-disclosure of personal data	Except as provided in this Act, a person shall not disclose to another person or allow another person to have access to the content or nature of the personal data of the data subject, in his possession.	Functional	Intersects With	Sensitive / Regulated Data Protection	DCH-01.2	Mechanisms exist to protect sensitive and/or regulated data wherever it is processed and/or stored.	5	
V.46(2)	Non-disclosure of personal data	A data controller shall not disclose the personal data of a data subject without first obtaining the consent of the data subject under this Act, unless the disclosure of the personal data is necessary to —	Functional	Intersects With	Sensitive / Regulated Data Protection	DCH-01.2	Mechanisms exist to protect sensitive and/or regulated data wherever it is processed and/or stored.	5	

NIST IR 8477-Based Set Theory Relationship Mapping (STRM)

Reference Document: Secure Controls Framework (SCF) version 2026.2

STRM Guidance: <https://securecontrolsframework.com/start-here/set-theory-relationship-mapping-strm/>

Focal Document: Bahamas - Data Protection Act (DPA) (2003)

Focal Document URL: <https://www.lexbahamas.com/Data%20Protection%202003.pdf>

Published STRM URL: <https://content.securecontrolsframework.com/strm/scf-strm-americas-bhs-dpa-2003.pdf>

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
V.46(2)(a)	Non-disclosure of personal data	prevent a reasonable threat to national security, defence, public safety or public order; or	Functional	Intersects With	Sensitive / Regulated Data Protection	DCH-01.2	Mechanisms exist to protect sensitive and/or regulated data wherever it is processed and/or stored.	5	
V.46(2)(b)	Non-disclosure of personal data	investigate or prosecute a cognizable offence.	Functional	Intersects With	Sensitive / Regulated Data Protection	DCH-01.2	Mechanisms exist to protect sensitive and/or regulated data wherever it is processed and/or stored.	5	
V.46(3)	Non-disclosure of personal data	A data controller who is required to disclose the personal data of a data subject shall, prior to disclosing the personal data, inform the data subject of —	Functional	Intersects With	Notification of Disclosure Request To Data Subject	PRI-14.2	Mechanisms exist to notify data subjects of applicable legal requests to disclose Personal Data (PD).	5	
V.46(3)(a)	Non-disclosure of personal data	when and to whom the personal data shall be disclosed;	Functional	Intersects With	Notification of Disclosure Request To Data Subject	PRI-14.2	Mechanisms exist to notify data subjects of applicable legal requests to disclose Personal Data (PD).	5	
V.46(3)(b)	Non-disclosure of personal data	the purpose of the disclosure of the personal data;	Functional	Intersects With	Notification of Disclosure Request To Data Subject	PRI-14.2	Mechanisms exist to notify data subjects of applicable legal requests to disclose Personal Data (PD).	5	
V.46(3)(c)	Non-disclosure of personal data	the security practices, privacy policies and other policies, that protect the personal data of the data subject; and	Functional	Intersects With	Notification of Disclosure Request To Data Subject	PRI-14.2	Mechanisms exist to notify data subjects of applicable legal requests to disclose Personal Data (PD).	5	
V.46(3)(d)	Non-disclosure of personal data	the procedure for recourse in case of a grievance in relation to the disclosure of the personal data.	Functional	Intersects With	Notification of Disclosure Request To Data Subject	PRI-14.2	Mechanisms exist to notify data subjects of applicable legal requests to disclose Personal Data (PD).	5	
V.46(4)	Non-disclosure of personal data	A person who contravenes this section commits an offence and is liable on summary conviction to a fine not exceeding fifty thousand dollars or to imprisonment for a term not exceeding three years or to both.	Functional	No Relationship	N/A	N/A	N/A	0	
V.47	Notification of breach of personal data	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
V.47(1)	Notification of breach of personal data	A data controller shall notify the Commissioner within three working days, after having become aware of a breach of personal data that is likely to result in a risk to the fundamental rights and freedoms of an identifiable natural person.	Functional	Intersects With	Cyber Incident Reporting for Sensitive / Regulated Data	IRO-10.2	Mechanisms exist to report sensitive and/or regulated data incidents in a timely manner.	5	
V.47(2)	Notification of breach of personal data	Where the notification referred to in subsection (1) is not made by the data controller to the Commissioner within three working days, the data controller shall provide reasons for the delay to the Commissioner.	Functional	Intersects With	Cyber Incident Reporting for Sensitive / Regulated Data	IRO-10.2	Mechanisms exist to report sensitive and/or regulated data incidents in a timely manner.	5	
V.47(3)	Notification of breach of personal data	A data processor shall notify the data controller within three working days, after having become aware of a breach of personal data.	Functional	Intersects With	Cyber Incident Reporting for Sensitive / Regulated Data	IRO-10.2	Mechanisms exist to report sensitive and/or regulated data incidents in a timely manner.	5	
V.47(4)	Notification of breach of personal data	The notification of the breach of personal data referred to in subsections (1) and (3) shall —	Functional	No Relationship	N/A	N/A	N/A	0	
V.47(4)(a)	Notification of breach of personal data	describe the nature of the breach;	Functional	Intersects With	Cyber Incident Reporting for Sensitive / Regulated Data	IRO-10.2	Mechanisms exist to report sensitive and/or regulated data incidents in a timely manner.	5	
V.47(4)(b)	Notification of breach of personal data	specify the categories of the breach;	Functional	Intersects With	Cyber Incident Reporting for Sensitive / Regulated Data	IRO-10.2	Mechanisms exist to report sensitive and/or regulated data incidents in a timely manner.	5	
V.47(4)(c)	Notification of breach of personal data	specify the number of data subjects affected by the breach;	Functional	Intersects With	Cyber Incident Reporting for Sensitive / Regulated Data	IRO-10.2	Mechanisms exist to report sensitive and/or regulated data incidents in a timely manner.	5	
V.47(4)(d)	Notification of breach of personal data	specify the categories and number of personal data records affected by the breach;	Functional	Intersects With	Cyber Incident Reporting for Sensitive / Regulated Data	IRO-10.2	Mechanisms exist to report sensitive and/or regulated data incidents in a timely manner.	5	
V.47(4)(e)	Notification of breach of personal data	specify the name and contact details of the data protection officer or other contact point where more information can be obtained;	Functional	Intersects With	Cyber Incident Reporting for Sensitive / Regulated Data	IRO-10.2	Mechanisms exist to report sensitive and/or regulated data incidents in a timely manner.	5	
V.47(4)(f)	Notification of breach of personal data	describe the consequences of the breach;	Functional	Intersects With	Cyber Incident Reporting for Sensitive / Regulated Data	IRO-10.2	Mechanisms exist to report sensitive and/or regulated data incidents in a timely manner.	5	
V.47(4)(g)	Notification of breach of personal data	describe the measures taken or proposed to address the breach; and	Functional	Intersects With	Cyber Incident Reporting for Sensitive / Regulated Data	IRO-10.2	Mechanisms exist to report sensitive and/or regulated data incidents in a timely manner.	5	
V.47(4)(h)	Notification of breach of personal data	outline the measures to mitigate the adverse effects of the breach.	Functional	Intersects With	Cyber Incident Reporting for Sensitive / Regulated Data	IRO-10.2	Mechanisms exist to report sensitive and/or regulated data incidents in a timely manner.	5	
V.47(5)	Notification of breach of personal data	Where it is not possible to provide all the information required under subsection (4) at the same time, the information may be provided in phases within seven working days or within a extended time as prescribed.	Functional	Intersects With	Cyber Incident Reporting for Sensitive / Regulated Data	IRO-10.2	Mechanisms exist to report sensitive and/or regulated data incidents in a timely manner.	5	
V.47(6)	Notification of breach of personal data	The data controller shall record every breach of personal data and shall describe in the record —	Functional	Intersects With	Cyber Incident Reporting for Sensitive / Regulated Data	IRO-10.2	Mechanisms exist to report sensitive and/or regulated data incidents in a timely manner.	5	
V.47(6)(a)	Notification of breach of personal data	the facts relating to the breach;	Functional	Intersects With	Cyber Incident Reporting for Sensitive / Regulated Data	IRO-10.2	Mechanisms exist to report sensitive and/or regulated data incidents in a timely manner.	5	
V.47(6)(b)	Notification of breach of personal data	the effects of the breach; and	Functional	Intersects With	Cyber Incident Reporting for Sensitive / Regulated Data	IRO-10.2	Mechanisms exist to report sensitive and/or regulated data incidents in a timely manner.	5	
V.47(6)(c)	Notification of breach of personal data	the remedial action taken in order to facilitate the assessment by the Commissioner of the compliance of this section by the data controller.	Functional	Intersects With	Cyber Incident Reporting for Sensitive / Regulated Data	IRO-10.2	Mechanisms exist to report sensitive and/or regulated data incidents in a timely manner.	5	
V.48	Communication of breach of personal data to a data subject	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
V.48(1)	Communication of breach of personal data to a data subject	Where a breach of personal data is likely to result in the violation of the fundamental rights and freedoms of a data subject, the data controller shall communicate the breach of personal data to the data subject within three working days after having become aware of the breach.	Functional	Subset Of	Data Breach	IRO-04.1	Mechanisms exist to address data breaches, or other incidents involving the unauthorized disclosure of sensitive or regulated data, according to applicable laws, regulations and contractual obligations.	10	
V.48(2)	Communication of breach of personal data to a data subject	The communication of the breach of personal data specified in subsection (1) shall describe in clear and plain language the nature of the breach and contain the information specified in section 47(4).	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
V.48(3)	Communication of breach of personal data to a data subject	The communication of the breach of personal data to the data subject referred to in subsection (1), is not required where the following conditions are satisfied that —	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
V.48(3)(a)	Communication of breach of personal data to a data subject	the data controller has implemented appropriate technical and organizational measures which when applied to the personal data affected by the breach, rendered the personal data unintelligible to a person who is not authorized to access it;	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
V.48(3)(b)	Communication of breach of personal data to a data subject	the data controller has taken subsequent measures which ensure that the violation of the fundamental rights and freedoms of a data subject is no longer likely to materialize; or	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
V.48(3)(c)	Communication of breach of personal data to a data subject	the notification of the breach would involve a disproportionate effort due to the number of data subjects affected, and a public communication or similar measure by which affected data subjects are informed of the breach, would be an effective method of notification of the breach to the affected data subjects.	Functional	Intersects With	Incident Stakeholder Reporting	IRO-10	Mechanisms exist to timely-report incidents to applicable: (1) Internal stakeholders; (2) Affected clients & third-parties; and (3) Regulatory authorities.	5	
V.49	Automated data processing	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
V.49(1)	Automated data processing	Subject to this section, no data subject shall be subject to a decision based solely on automated data processing or profiling, which produces legal effects concerning the data subject or similarly affects the data subject.	Functional	Intersects With	Automated Decision-Making Technology (ADMT) For Data Subject Actions	PRI-19	Mechanisms exist to ensure data subject actions utilizing Automated Decision-Making Technology (ADMT) where computation replaces, or substantially replaces, human decisionmaking, conforms with all applicable statutory, regulatory and/or contractual obligations.	5	
V.49(2)	Automated data processing	Subsection (1) does not apply where the decision is —	Functional	Intersects With	Automated Decision-Making Technology (ADMT) For Data Subject Actions	PRI-19	Mechanisms exist to ensure data subject actions utilizing Automated Decision-Making Technology (ADMT) where computation replaces, or substantially replaces, human decisionmaking, conforms with all applicable statutory, regulatory and/or contractual obligations.	5	

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V.49(2)(a)	Automated data processing	necessary for entering into, or performing a contract between the data subject and a data controller;	Functional	Intersects With	Automated Decision-Making Technology (ADMT) For Data Subject Actions	PRI-19	Mechanisms exist to ensure data subject actions utilizing Automated Decision-Making Technology (ADMT) where computation replaces, or substantially replaces, human decisionmaking, conforms with all applicable statutory, regulatory and/or contractual obligations.	5	
V.49(2)(b)	Automated data processing	authorized by a written law to which the data controller is subject, and which also specifies suitable measures to safeguard the data subject's fundamental rights and freedoms; or	Functional	Intersects With	Automated Decision-Making Technology (ADMT) For Data Subject Actions	PRI-19	Mechanisms exist to ensure data subject actions utilizing Automated Decision-Making Technology (ADMT) where computation replaces, or substantially replaces, human decisionmaking, conforms with all applicable statutory, regulatory and/or contractual obligations.	5	
V.49(2)(c)	Automated data processing	based on the consent of data subject for automated data processing or profiling.	Functional	Intersects With	Automated Decision-Making Technology (ADMT) For Data Subject Actions	PRI-19	Mechanisms exist to ensure data subject actions utilizing Automated Decision-Making Technology (ADMT) where computation replaces, or substantially replaces, human decisionmaking, conforms with all applicable statutory, regulatory and/or contractual obligations.	5	
V.49(3)	Automated data processing	In cases referred to in subsection (2)(a) and (c), the data controller shall implement suitable measures to safeguard a data subject's fundamental rights and freedoms.	Functional	Intersects With	Automated Decision-Making Technology (ADMT) For Data Subject Actions	PRI-19	Mechanisms exist to ensure data subject actions utilizing Automated Decision-Making Technology (ADMT) where computation replaces, or substantially replaces, human decisionmaking, conforms with all applicable statutory, regulatory and/or contractual obligations.	5	
V.49(4)	Automated data processing	Subsection (2) shall not apply to sensitive personal data of the data subject unless —	Functional	Intersects With	Automated Decision-Making Technology (ADMT) For Data Subject Actions	PRI-19	Mechanisms exist to ensure data subject actions utilizing Automated Decision-Making Technology (ADMT) where computation replaces, or substantially replaces, human decisionmaking, conforms with all applicable statutory, regulatory and/or contractual obligations.	5	
V.49(4)(a)	Automated data processing	the use of automated data processing or profiling is in the public interest; and	Functional	Intersects With	Automated Decision-Making Technology (ADMT) For Data Subject Actions	PRI-19	Mechanisms exist to ensure data subject actions utilizing Automated Decision-Making Technology (ADMT) where computation replaces, or substantially replaces, human decisionmaking, conforms with all applicable statutory, regulatory and/or contractual obligations.	5	
V.49(4)(b)	Automated data processing	suitable measures to safeguard the data subject's fundamental rights and freedoms, are implemented and enforced.	Functional	Intersects With	Automated Decision-Making Technology (ADMT) For Data Subject Actions	PRI-19	Mechanisms exist to ensure data subject actions utilizing Automated Decision-Making Technology (ADMT) where computation replaces, or substantially replaces, human decisionmaking, conforms with all applicable statutory, regulatory and/or contractual obligations.	5	
V.50	Data protection impact assessment	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
V.50(1)	Data protection impact assessment	The data controller shall, prior to processing personal data, carry out a data protection impact assessment on the processing of personal data, where the processing of personal data —	Functional	Intersects With	Data Protection Impact Assessment (DPIA)	RSK-10	Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.	5	
V.50(1)(a)	Data protection impact assessment	uses new technologies; and	Functional	Intersects With	Data Protection Impact Assessment (DPIA)	RSK-10	Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.	5	
V.50(1)(b)	Data protection impact assessment	is likely to result in a violation of the fundamental rights and freedoms of an identifiable natural person.	Functional	Intersects With	Data Protection Impact Assessment (DPIA)	RSK-10	Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.	5	
V.50(2)	Data protection impact assessment	Notwithstanding subsection (1), a data protection impact assessment is required —	Functional	Intersects With	Data Protection Impact Assessment (DPIA)	RSK-10	Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.	5	
V.50(2)(a)	Data protection impact assessment	where a systematic and extensive evaluation of the personal aspects relating to an identifiable natural person is based on automated data processing and profiling, and on which decisions are based that produce legal effects concerning the identifiable natural person or similarly significantly affect the identifiable natural person;	Functional	Intersects With	Data Protection Impact Assessment (DPIA)	RSK-10	Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.	5	
V.50(2)(b)	Data protection impact assessment	in the case of processing on a large scale of sensitive personal data; or	Functional	Intersects With	Data Protection Impact Assessment (DPIA)	RSK-10	Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.	5	
V.50(2)(c)	Data protection impact assessment	for the systematic monitoring of a publicly accessible area on a large scale.	Functional	Intersects With	Data Protection Impact Assessment (DPIA)	RSK-10	Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.	5	
V.50(3)	Data protection impact assessment	A data protection impact assessment shall contain —	Functional	Intersects With	Data Protection Impact Assessment (DPIA)	RSK-10	Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.	5	
V.50(3)(a)	Data protection impact assessment	a systematic description of the proposed processing operations and the purposes of the processing, including the legitimate interest pursued by the data controller;	Functional	Intersects With	Data Protection Impact Assessment (DPIA)	RSK-10	Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.	5	
V.50(3)(b)	Data protection impact assessment	an assessment of the necessity and proportionality of the processing operations in relation to the purposes;	Functional	Intersects With	Data Protection Impact Assessment (DPIA)	RSK-10	Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.	5	
V.50(3)(c)	Data protection impact assessment	an assessment of the risks to the fundamental rights and freedoms of data subjects; and	Functional	Intersects With	Data Protection Impact Assessment (DPIA)	RSK-10	Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.	5	
V.50(3)(d)	Data protection impact assessment	the measures proposed to address the risks, including safeguards, security measures and mechanisms to ensure the protection of personal data and to demonstrate compliance with this Act.	Functional	Intersects With	Data Protection Impact Assessment (DPIA)	RSK-10	Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.	5	
V.50(4)	Data protection impact assessment	Where appropriate, the data controller shall seek the views of data subjects on the proposed processing, without prejudice to the protection of commercial or public interests or the security of processing operations.	Functional	Intersects With	Data Protection Impact Assessment (DPIA)	RSK-10	Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.	5	
V.50(5)	Data protection impact assessment	If there is a change of risk in processing operations, the data controller shall carry out a review to assess whether processing is performed in accordance with the data protection impact assessment.	Functional	Intersects With	Data Protection Impact Assessment (DPIA)	RSK-10	Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.	5	
V.50(6)	Data protection impact assessment	The data controller shall consult the Commissioner prior to processing where a data protection impact assessment indicates that processing would result in a high risk to the fundamental rights and freedoms of an identifiable natural person in the absence of measures taken by the data controller to mitigate the risk.	Functional	Intersects With	Data Protection Impact Assessment (DPIA)	RSK-10	Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.	5	
V.50(7)	Data protection impact assessment	Where the Commissioner is of the opinion that the intended processing referred to in subsection (6) would infringe this Act, in particular where the data controller has insufficiently identified or mitigated the risk, the Commissioner shall, within a period of up to eight weeks of receipt of the request for consultation, or other period as the Commissioner may specify having regard to the complexity of the intended processing, provide written advice to the data controller or where applicable the data processor.	Functional	Intersects With	Data Protection Impact Assessment (DPIA)	RSK-10	Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.	5	
V.50(8)	Data protection impact assessment	The data controller shall when consulting the Commissioner pursuant to subsection (6), provide the Commissioner with —	Functional	Intersects With	Data Protection Impact Assessment (DPIA)	RSK-10	Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.	5	
V.50(8)(a)	Data protection impact assessment	the respective responsibilities of the data controller and data processor involved in the processing, particularly for processing within a group of undertakings;	Functional	Intersects With	Data Protection Impact Assessment (DPIA)	RSK-10	Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.	5	
V.50(8)(b)	Data protection impact assessment	the purposes and means of the intended processing;	Functional	Intersects With	Data Protection Impact Assessment (DPIA)	RSK-10	Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.	5	

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V.50(8)(c)	Data protection impact assessment	the measures and safeguards provided to protect the fundamental rights and freedoms of data subjects pursuant to this Act;	Functional	Intersects With	Data Protection Impact Assessment (DPIA)	RSK-10	Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.	5	
V.50(8)(d)	Data protection impact assessment	the contact details of the data protection officer;	Functional	Intersects With	Data Protection Impact Assessment (DPIA)	RSK-10	Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.	5	
V.50(8)(e)	Data protection impact assessment	the data protection impact assessment; and	Functional	Intersects With	Data Protection Impact Assessment (DPIA)	RSK-10	Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.	5	
V.50(8)(f)	Data protection impact assessment	any other information requested by the Commissioner.	Functional	Intersects With	Data Protection Impact Assessment (DPIA)	RSK-10	Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.	5	
V.51	Data processing by data processors	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
V.51(1)	Data processing by data processors	Where processing is to be carried out by a data processor, the data controller shall —	Functional	No Relationship	N/A	N/A	N/A	0	
V.51(1)(a)	Data processing by data processors	only use data processors that provide sufficient guarantees to implement appropriate technical and organisational measures referred to in this section; and	Functional	Intersects With	Adequate Security for Sensitive / Regulated Data In Support of Contracts	IAO-03.2	Mechanisms exist to protect sensitive and/or regulated data that is collected, developed, received, transmitted, used or stored in support of the performance of a contract.	5	
V.51(1)(a)	Data processing by data processors	only use data processors that provide sufficient guarantees to implement appropriate technical and organisational measures referred to in this section; and	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
V.51(1)(b)	Data processing by data processors	enter into a written contract with the data processor in a manner that provides for —	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
V.51(1)(b)(i)	Data processing by data processors	the subject matter and duration of the processing;	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
V.51(1)(b)(ii)	Data processing by data processors	the nature and purpose of the processing;	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
V.51(1)(b)(iii)	Data processing by data processors	the type of personal data and categories of data subjects;	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
V.51(1)(b)(iv)	Data processing by data processors	the obligations and rights of the data controller.	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
V.51(2)	Data processing by data processors	The contract prepared pursuant to subsection (1)(b) shall also stipulate that the data processor shall —	Functional	No Relationship	N/A	N/A	N/A	0	
V.51(2)(a)	Data processing by data processors	process the personal data only on written instructions from the data controller, including with regard to transfers of personal data to countries outside of The Bahamas or an international organisation, unless required to do so by a written law and in either of these cases, the data processor shall inform the data controller of that legal requirement before processing, unless the written law prohibits such information to be shared on important grounds of public interest;	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
V.51(2)(b)	Data processing by data processors	ensure that the persons authorised to process the personal data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality;	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
V.51(2)(c)	Data processing by data processors	take all measures required pursuant to section 52;	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
V.51(2)(d)	Data processing by data processors	respect the conditions referred to in subsections (3) and (6) for engaging another data processor;	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
V.51(2)(e)	Data processing by data processors	take into account the nature of the processing, assist the data controller by appropriate technical and organizational measures, so far as possible, for the fulfilment of the data controller's obligation to respond to requests for exercising the data subject's rights under Part IV;	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
V.51(2)(f)	Data processing by data processors	assist the data controller in ensuring compliance with the obligations pursuant to sections 47, 48, 50 and 52;	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
V.51(2)(g)	Data processing by data processors	on the determination of the data controller, deletes or returns all the personal data to the data controller after the end of the provision of services relating to processing, and deletes existing copies unless an enactment requires the storage of the personal data; and	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
V.51(2)(h)	Data processing by data processors	make available to the data controller all information necessary to demonstrate compliance with the obligations set out in this section and allow for and contribute to audits, including inspections, conducted by the data controller or another auditor mandated by the data controller.	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
V.51(3)	Data processing by data processors	The data processor shall not engage another data processor without prior specific or general written authorisation of the data controller.	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
V.51(4)	Data processing by data processors	Where there is a general authorisation pursuant to subsection (3), the data processor shall inform the data controller of any intended changes concerning the addition or replacement of other data processors and the data controller shall be given the opportunity to object to such changes.	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
V.51(5)	Data processing by data processors	Where a data processor engages another data processor for carrying out specific processing activities on behalf of the data controller in accordance with subsection (3) —	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
V.51(5)(a)	Data processing by data processors	the same obligations set out in the contract between the data controller and the data processor referred to in subsection (2) shall be imposed on that other data processor, in particular providing sufficient guarantees to implement appropriate technical and organizational measures in such manner that the processing will meet the requirements of this Act; and	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
V.51(5)(b)	Data processing by data processors	the initial data processor shall, where the other data processor fails to fulfil its data protection obligations, remain fully liable to the data controller for the performance of the other data processor's obligations.	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
V.51(6)	Data processing by data processors	The Commissioner shall publish on the official website of the Office of the Data Protection Commission standard contractual clauses for the matters referred to in subsections (2) and (5)(a).	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
V.51(7)	Data processing by data processors	The data processor and any person acting under the authority of the data controller or the data processor who has access to personal data shall not process that data except on instructions from the data controller, unless required to do so by any written law.	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
V.51(8)	Data processing by data processors	A person who contravenes subsection (7) commits an offence and is liable on summary conviction to a fine not exceeding ten thousand dollars or to a term of imprisonment of six months, or to both.	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
V.52	Security of processing	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
V.52(1)	Security of processing	Every data controller shall adopt appropriate technical and organizational measures to protect personal data against data security risks, including unlawful or unauthorised processing of, and access to, as well as accidental loss, modification or destruction of the data.	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
V.52(2)	Security of processing	Every data controller shall, having regard to the nature, scope and purpose of processing personal data undertaken, the risks associated with such processing, and the likelihood and severity of the harm that may result from such processing, implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, including –	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
V.52(2)(a)	Security of processing	maintaining the integrity of personal data using methods including pseudonymization and encryption;	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
V.52(2)(b)	Security of processing	the ability to ensure the ongoing confidentiality, integrity, availability and resilience of processing systems and services;	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
V.52(2)(c)	Security of processing	the ability to restore the availability and access to personal data in a timely manner in the event of a physical or technical incident; and	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
V.52(2)(d)	Security of processing	a process for regularly testing, assessing and evaluating the effectiveness of technical and organizational measures for ensuring the security of processing.	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
V.52(3)	Security of processing	Every data controller shall inform data subjects of the technical and organizational measures utilised to protect the personal data associated with the processing of that data subject's data and ensure strict adherence to such measures.	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
V.52(4)	Security of processing	Every data controller shall, in accordance with guidelines issued by the Commissioner undertake periodic review of technical and organizational measures implemented pursuant to subsection (2).	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
VI	TRANSFER OF PERSONAL DATA OUTSIDE THE BAHAMAS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
VI.53	General principle for transfer outside The Bahamas	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
VI.53(1)	General principle for transfer outside The Bahamas	Personal data shall not be transferred to a country, territory or international organization unless that country, territory or international organization ensures an adequate level of protection for the rights and freedoms of data subjects in relation to the processing of personal data.	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
VI.53(2)	General principle for transfer outside The Bahamas	A person who transfers data to a country or territory outside of the Bahamas in contravention of this section, commits an offence and is liable on summary conviction to a fine not exceeding fifty thousand dollars or to a term of imprisonment not exceeding three years, or to both.	Functional	No Relationship	N/A	N/A	N/A	0	
VI.53(3)	General principle for transfer outside The Bahamas	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
VI.54	Conditions for transfer outside of The Bahamas	Notwithstanding section 48, personal data may be transferred outside of The Bahamas where –	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
VI.54(a)	Conditions for transfer outside of The Bahamas	the data subject consents to the transfer;	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
VI.54(b)	Conditions for transfer outside of The Bahamas	the transfer is necessary –	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
VI.54(b)(i)	Conditions for transfer outside of The Bahamas	for the performance of a contract between the data subject and the data controller or implementation of pre-contractual measures taken at the data subject's request;	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
VI.54(b)(ii)	Conditions for transfer outside of The Bahamas	for the conclusion or performance of a contract concluded in the interest of the data subject between the data controller and another person;	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
VI.54(b)(iii)	Conditions for transfer outside of The Bahamas	for any matter of public interest as specified by the Minister by order;	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
VI.54(b)(iv)	Conditions for transfer outside of The Bahamas	for the establishment, exercise or defence of a legal claim;	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
VI.54(b)(v)	Conditions for transfer outside of The Bahamas	where the data subject is physically or legally incapable of giving consent, in order to protect the fundamental rights and freedoms of the data subject or of other persons; or	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
VI.54(b)(vi)	Conditions for transfer outside of The Bahamas	for the purpose of compelling legitimate interests pursued by the data controller which are not overridden by the interests, fundamental rights and freedoms of the data subjects;	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
VI.54(c)	Conditions for transfer outside of The Bahamas	the transfer of personal data is part of the personal data on a public register and any conditions subject to which the register is open to inspection are complied with by any person to whom the data is or may be disclosed after the transfer.	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
VI.55	Non-compliance	One year from the date of commencement of this Act, every data controller shall review – for the purposes of ensuring that he strictly complies with all transfer of personal data requirements, as set forth in this Part.	Functional	Intersects With	Control Conformity Monitoring	CPL-03	Mechanisms exist to validate that Technology Assets, Applications, Services and/or Data (TAASD) conform to the organization's security, compliance and/or resilience policies, standards and other applicable requirements.	5	
VI.55(a)	Non-compliance	his current third party data storage; or	Functional	Intersects With	Control Conformity Monitoring	CPL-03	Mechanisms exist to validate that Technology Assets, Applications, Services and/or Data (TAASD) conform to the organization's security, compliance and/or resilience policies, standards and other applicable requirements.	5	
VI.55(b)	Non-compliance	cross-border data storage contracts,	Functional	Intersects With	Control Conformity Monitoring	CPL-03	Mechanisms exist to validate that Technology Assets, Applications, Services and/or Data (TAASD) conform to the organization's security, compliance and/or resilience policies, standards and other applicable requirements.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
VII	EXEMPTIONS TO DATA PROTECTION STANDARDS OR TO DISCLOSURE OF DATA SUBJECT REQUIREMENTS	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
VIII	ENFORCEMENT	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
IX	DATA PROTECTION APPEAL TRIBUNAL	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
X	DATA PROTECTION OVERSIGHT COMMITTEE	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
X.90	Establishment of Data Protection Oversight Committee	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
X.90(1)	Establishment of Data Protection Oversight Committee	There is established a Data Protection Oversight Committee (hereinafter referred to as the "Committee")	Functional	No Relationship	N/A	N/A	N/A	0	
X.90(2)	Establishment of Data Protection Oversight Committee	The objective of the Committee is to hold the Commissioner accountable to the public in the performance of the Commissioner's functions under this Act.	Functional	No Relationship	N/A	N/A	N/A	0	
X.90(3)	Establishment of Data Protection Oversight Committee	The Second Schedule has effect with respect to the constitution of the Committee.	Functional	No Relationship	N/A	N/A	N/A	0	
X.91	Functions of Committee	The functions of the Committee are to —	Functional	No Relationship	N/A	N/A	N/A	0	
X.91(a)	Functions of Committee	monitor and review the performance of the functions of the Commissioner;	Functional	No Relationship	N/A	N/A	N/A	0	
X.91(b)	Functions of Committee	report to both Houses of Parliament on any matter relating to the performance of the functions of the Commissioner;	Functional	No Relationship	N/A	N/A	N/A	0	
X.91(c)	Functions of Committee	review the report laid before Parliament under section 21 and make recommendations; and	Functional	No Relationship	N/A	N/A	N/A	0	
X.91(d)	Functions of Committee	perform other functions as may be necessary for promoting the objective of the Committee under section 90(2).	Functional	No Relationship	N/A	N/A	N/A	0	
X.92	Powers of Committee	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
X.92(1)	Powers of Committee	The Committee shall have the power as may be requisite or incidental for or in connection with the performance of its functions.	Functional	No Relationship	N/A	N/A	N/A	0	
X.92(2)	Powers of Committee	Without prejudice to the generality of subsection (1), the Committee —	Functional	No Relationship	N/A	N/A	N/A	0	
X.92(2)(a)	Powers of Committee	may investigate any aspect of the operations of the Commissioner, or any conduct of the Commissioner, or any employee of the Office of the Data Protection Commissioner in relation to their functions under this Act;	Functional	No Relationship	N/A	N/A	N/A	0	
X.92(2)(b)	Powers of Committee	is entitled to take copies of any document in relation to any matter under investigation by the Committee;	Functional	No Relationship	N/A	N/A	N/A	0	
X.92(2)(c)	Powers of Committee	may require the Commissioner to supply information or provide documents in respect of any matter relating to the operations of the Office of the Data Protection Commissioner or the conduct of any employee in relation to their functions under this Act; and	Functional	No Relationship	N/A	N/A	N/A	0	
X.92(2)(d)	Powers of Committee	shall have the powers, protections and immunities conferred upon a Commission under the Commissions of Inquiry Act (Ch. 184), for the purposes of investigating any aspect of the operations of the Commissioner under paragraph (a), and the provisions of Commissions of Inquiry Act (Ch. 184) shall apply with the necessary modifications, to any person summoned by or appearing before the Committee.	Functional	No Relationship	N/A	N/A	N/A	0	
XI	GENERAL	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	